STORM WATER MANAGEMENT PLAN

FOR

MONTGOMERY COUNTY
MUNICIPAL UTILITY DISTRICT NO. 16

BE PROJECT NO. 1783-90304-003

IN

MONTGOMERY COUNTY, TEXAS

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Section 2. Introduction

1. Regulatory Requirements

The Texas Commission on Environmental Quality (the "TCEQ") issued Texas Pollutant Discharge and Elimination System ("TPDES") General Permit No. TXR040000, which is a general permit to discharge under the TPDES under provisions of Section 402 of the Clean Water Act and Chapter 26 of the Texas Water Code. This general permit was issued on August 13, 2007, and has been suspended and renewed every five years. The most recent renewal took place on August 15, 2024. This permit authorizes small municipal separate storm sewer systems ("MS4s") to discharge directly to surface waters of the state. The general permit contains requirements applicable to all small MS4s that are eligible for coverage under this general permit.

Montgomery County Municipal Utility District No. 16 (the "District") is a small MS4 that must apply for coverage under the reissued general permit. Additionally, the District is fully located within an urbanized area ("UA"), as determined by the 2020 Census by the U.S. Bureau of Census. As a result, the District must obtain authorization for the discharge of storm water runoff and is eligible for coverage under this permit.

Regulated small MS4s are categorized into four levels, with different permit requirements applied to each level. The level of a small MS4 is based on the population served by the small MS4 within the urbanized area. A Level 2 small MS4 serves a population of at least 10,000, but less than 40,000 within a UA. This category also includes non-traditional MS4s such as municipal utility districts ("MUDs"). According to the TCEQ Central Registry, the District serves approximately 621 people. The District is considered a Level 2 small MS4 due to it being a non-traditional MS4.

The District has prepared this Storm Water Management Plan ("SWMP") in order to obtain coverage for storm water discharges under TPDES General Permit No. TXR040000 in addition to a Notice of Intent ("NOI"). This general permit requires at a minimum:

1. A SWMP which includes a description of Minimum Control Measures ("MCM") with measurable goals.
2. A measurable goal that includes the development of ordinances or other regulatory mechanisms necessary to implement and enforce the requirements of this permits.
3. A description of a program or a plan of compliance with the discharges of the pollutant(s) of concern to impaired water bodies for which there is a TCEQ and Environmental Protection Agency ("EPA") approved total maximum daily load ("TMDL").
4. A summary of written procedures describing how the permittee will implement the SMWP, keep maintenance records, and submit an annual report.

The general permit requires that six (6) Minimum Control Measures be addressed with Best Management Practices ("BMPs"). The following is a list of the six MCMs along with the BMPs selected to address them:

1.0 Public Education and Outreach

- 1.1: Webpage Information
- 1.2: Storm Drain Markers
- 1.3: Public Involvement
- 1.4: Public Notice Requirements

2.0 Public Involvement and Participation

- 2.1: Water Quality Monitoring
- 2.2: Stormwater Survey
- 2.3: Public Meeting

3.0 Illicit Discharge Detection and Elimination

- 3.1: MS4 Mapping
- 3.2: Education and Training
- 3.3: Public Reporting of Illicit Discharges and Spills
- 3.4: Procedures for Responding to Illicit Discharges and Spills
- 3.5: Program to Detect and Eliminate Illicit Discharges Including Source Investigation
- 3.6: Prevention and Correction of Leaking On-Site Sewage Facilities

4.0 Construction Site Storm Water Runoff Control

- 4.1: Review and Maintain Technical Manual
- 4.2: Discharge Prohibitions
- 4.3: Reporting Hotline
- 4.4: Evaluate and Upgrade Site Plan Review and Site Inspection Programs
- 4.5: Contractor Training and Certification

5.0 Post-Construction Storm Water Management

- 5.1: Evaluate and Upgrade Site Plan Review and Site Inspection Programs
- 5.2: Review and Maintain Technical Manual
- 5.3: Long Term Operation and Maintenance

6.0 Pollution Prevention and Good Housekeeping

- 6.1: Storm Sewer and Drainage System Inspection and Maintenance Program
- 6.2: Good Housekeeping Operations at District Owned Facilities
- 6.3: Field Staff and Operator Training

2. Montgomery County MUD No. 16 Description

The District was created by order of the Texas Water Commission (now the Texas Commission on Environmental Quality on December 7, 1972. The District is organized and operates under terms and provisions of Article XVI, Section 59 of the Constitution of the State of Texas, and as provided in Chapters 49 and 54, Texas Water Code. At the time of creation, the District contained 591.2644 acres. The District's current acreage is 592.3642 acres.

The District is located in southeastern Montgomery County, approximately 33 miles northeast of Houston central business district, approximately 17 miles east of I-45 and 7 miles to the south of the City of Conroe. The City of Splendora is located north of the District; the District is bounded by the town of Patton Village to the south and west; vacant land lies to the east. The District is not located within the extraterritorial jurisdiction of any city in the area. The District outfalls to segment TX1011 Peach Creek, of the San Jacinto River Basin.

3. Storm Water Management Program Rationale

The District's SWMP is designed to address storm water quality management issues and practices. The District has selected BMPs for each of the six (6) applicable minimum control measures, which it believes are appropriate and reasonable for the District to implement. The proposed BMPs were also selected to effectively coordinate within the District's existing activities and programs.

The implementation schedules listed in the District's SWMP are proposed. In the event that schedule adjustments or BMP modifications are needed, revision to the SWMP will be made in accordance with the permit requirements.

Section 3. Minimum Control Measures

1. Public Education and Outreach

A. TPDES Phase II Permit Requirement (Part IV.D.1)

Public Education and Outreach on Storm Water Discharge Impacts

(a) The small MS4 operator shall implement a public education and outreach program to distribute educational materials to the community and conduct equivalent outreach about the impacts of stormwater discharges on water bodies and the steps that the public can take to reduce pollutants in stormwater runoff.

(1) The public education and outreach program shall at a minimum include the following target audiences, as applicable:
   a. Traditional MS4s and counties shall address the residents being served;
   b. Non-traditional MS4s (other than counties) shall address the community served by the MS4 as listed below:
      i. Universities shall target the faculty, other staff, and students;
      ii. Military bases shall target military personnel (and dependents), and employees (including contractors);
      iii. Prison complexes or other multi-building complexes shall target staff and contractors;
      iv. Municipal Utility Districts and other special districts shall target residents served, staff, and contractors; and
      v. Transportation authorities shall address staff, contractors, and users.
   c. Small MS4 operators shall address additional target audiences within the small MS4 service area (such as but not limited to, those listed in Table 2) as listed below:
      i. Levels 1, 2a, and 2b: No requirement for additional audiences;
      ii. Level 3: A minimum of one additional audience; or
      iii. Level 4: A minimum of two additional audiences.

Table 2: Additional Target Audiences

Additional Target Audiences
Schools, educational organizations, or youth service and youth groups
Businesses, including commercial facilities, home-base and mobile businesses
Institutions or formal organizations such as churches, hospitals, and service organizations
Developers or construction site operators
Homeowner or neighborhood associations
Industrial facilities
Visitors/tourists

(2) Small MS4 operators shall target specific pollutant(s) in the permittee's education program (such as, but not limited to, those listed in Table 3).

Each small MS4 shall have a minimum of one target pollutant for each target audience from Part IV.D.1(a)(1).a-c of this permit. Small MS4s may implement more than one target pollutant where desired or appropriate to address pollutants in stormwater discharges to the MEP. The target pollutant must be appropriate for the target audience. The same pollutant may be used for more than one target audience and the target pollutant(s) may change annually as needed.

Table 3: Pollutants and Sources

Pollutants and Sources
Grass clippings and leaf litter
Fertilizer and pesticides
Litter, trash containment, ballon releases
Dumping of solid waste
Illegal disposal of household hazardous waste
Pet waste
Failing septic systems
Swimming pool discharge, including saltwater pools
De-icing/rock salt usage/storage
Oil, grease, fluids from vehicles
Sediment runoff from construction activities
Unauthorized discharge of restaurant waste
Vehicle washing
Washwater/grey water

(3) Small MS4 operators must use appropriate educational resources as BMPs (materials, events, activities, etc.) in conjunction with the selected pollutants for the selected audiences. The message delivered by these BMPs must be applicable to the target audience and relate to the target pollutant (such as a newsletter article about updated illegal dumping and discharge ordinances distributed to auto mechanic businesses or a hazardous household waste disposal flyer when applying for trash or recycling services.) BMPs which are ongoing throughout the year or permit term may be counted as one annual BMP. Permittees shall explain how each BMP relates to the target pollutant and target audience. Small MS4 operators may change BMPs during the permit cycle if determined appropriate through annual reviews and a different BMP may be more effective for the small MS4's target pollutant or target audience. Any changes shall be reflected in the SWMP and explained in the annual report.

a. If the permittee has a public website, the permittee shall post its SWMP and the annual reports required under Part V.B.2 or a summary of the annual report on the permittee's website.
    i. The SWMP must be posted no later than 30 days after the NOI or NOC approval date; and
    ii. The annual report no later than 30 days after the due date.

b. Over the permit term, small MS4 operators shall implement a minimum number of public education and outreach BMPs from Table 4, as follows:
   i. Level 1: three BMPs;
   ii. Levels 2a and 2b: four BMPs; or
   iii. Levels 3 and 4: five BMPs.

Table 4: Required Public Education and Outreach BMPs

Activity/BMP	**Measurable Goals**
Information on the MS4 operator's website.	Maintain a webpage with current and accurate information and working links. • All links shall be checked, and the page shall be updated as necessary at a minimum of once annually. • Must be maintained for the full year, each year.
Social media posts, social media campaign.	Post a minimum of four times each year on a minimum of one social media platform. • The message shall address ways attendees can minimize or avoid adverse stormwater impacts or practices to improve the quality of stormwater runoff. • The messages shall be seasonally appropriate. • Must make a minimum of one post per quarter and all quarterly posts must be visible by attendees for the full year, each year.
Maintain or mark storm drains and inlets with, "No Dumping – Drains to Creek" or a similar message.	Placard, stencil, or paint a minimum of 10% of all known stormwater inlets in either high-impact areas identified by the small MS4 operator or impairment watersheds within the MS4 area each year. Where all known stormwater inlets have been marked, inspect, and maintain the markers for a minimum of 15% of all known stormwater inlets in either high-impact areas identified by the small MS4 operator or impairment watersheds within the MS4 area each year.

Activity/BMP	Measurable Goals
Media/advertising campaign/public service announcements in areas of high visibility: Billboard/poster; Bus shelter/bench; radio/television/movie theatre; and kiosks.	Develop topics that address activities or pollutants of concern. Advertisement must be active for a minimum of three weeks each year; or must have an estimated public exposure for the duration of the advertising campaign that is equal to twice the population of the small MS4 area (based on the most recent U.S. Census Bureau decennial population value for the small MS4 area).
Publish articles in local newspaper or newsletter, may be electronic.	Develop article topics that area group specific and address activities or pollutants of concern at a seasonally appropriate time. A minimum of two articles must be published or emailed to target audience groups each year.
Fact sheets/brochures/utility bill inserts/door hangers.	Develop material topics that are group specific and address activities or pollutants of concern. Fact sheets, brochures, bill inserts, door hangers, or handouts shall be distributed each year for at least 75% of the intended audience. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.
Permanent stormwater related signage.	Place signage in a location where the message is relevant, and highly visible to target audience. Signage will count as an annual BMP for the year it was put in place and for each subsequent year of this permit cycle as long as each of those years, the permittee inspects and maintains, as necessary, 100% of the signage once annually.
Promote, host, or develop educational meetings, seminar, or trainings.	Hold, host, or promote a minimum of one event for level 1 and 2 MS4s or two events for level 3 and 4 MS4s annually. • The events shall address ways attendees can minimize or avoid adverse impacts to stormwater or practices to improve the quality of stormwater runoff. • These events may address different pollutants and audiences.

Activity/BMP	Measurable Goals
Targeted education campaign via mail, email, or in person.	Minimum of one campaign annually distributed to at least 75% of the intended audience, or with a specific event advertised to at least 75% of the intended audience. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness. (Examples: Sediment control with small building permit; leaf litter email during street sweeping season, or education brochure to all businesses conducting certain activity)

c. Small MS4 operators shall create/host or support the public education and outreach BMP(s) in Part IV.D.1.(a)(3) and Table 4. To be considered support given to the coordinating groups, the small MS4 operator shall at minimum conduct at least one of the following or similar:
   i. Plan, or assist with planning, the distribution of materials;
   ii. Coordinate volunteers;
   iii. Contribute supplies, materials, tools, or equipment;
   iv. Provide assistance from MS4 staff to distribute the materials; or
   v. Provide financial support.
d. Small MS4 operators may partner with other MS4 operators to maximize the program and cost effectiveness of the required outreach.

B. Proposed BMPs, Activities, & Measurable Goals

1.1 Webpage Information

1.1.1 Description

The District will create a page in its website, as well as a link in the Operator's website (which will direct the user to the District's webpage), which will describe the storm water quality issues that affect the District.

1.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Review and update the educational material and messages on the District's webpage twice a year.

1.1.3 Responsible Persons

The Board of Directors, acting through the Engineer for the District, has responsibility for creation and implementation of BMP 1.1 Webpage Information to meet Measurable Goal 1.1.2.

1.2 Storm Drain Markers

1.2.1 Description

The District will implement a Storm Drain Marker program to mark all storm sewer inlets and manholes with a message such as "No Dumping, Drains to Waterway, Drains to Waterways" or similar. The District will also require the installation of storm drain markers on all new development projects.

1.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Mark 100% of storm sewer inlets and manholes in District.
- Permit Year 2025-2029: Inspect 100% of storm drain markers once a year for any missing or vandalized markers and replacing them as necessary.

1.2.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for creation and implementation of BMP 1.2 Storm Drain Markers to meet Measurable Goal 1.2.2.

1.3 Public Involvement

1.3.1 Description

The District will develop community involvement and outreach programs that are targeted towards local businesses and community groups. Creating opportunities for the general public and employees to learn about and become involved in the implementation of the Stormwater Management Program (SWMP).

1.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Contact local businesses, schools, youth, and other civic groups in the area and offer volunteer opportunities to become involved in an annual public SWMP implementation activity.
- Permit Year 2025-2029: Host an annual presentation during a public meeting addressing the status of SWMP BMPs.
- Permit Year 2025-2029: Document 100% of annual activities and presentations.

1.3.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for creation and implementation of BMP 1.3 Public Involvement to meet Measurable Goal 1.3.2.

1.4 Public Notice Requirements

1.4.1 Description

The District will comply with state and local public notice requirements when implementing a public involvement and participation program. The District will make the SWMP available via the community billboard.

1.4.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Maintain a log of the dates of 100% of public notice and the requirements of county actions.

1.4.3 Responsible Persons

The Board of Directors, acting through the Engineer for the District has responsibility for implementation of BMP 1.4 Public Notice Requirements to meet Measurable Goal 1.4.2.

2. Public Involvement and Participation

A. TPDES Phase II Permit Requirement (Part IV.D.2)

All permittees, except prisons/correctional facilities, shall involve the public, and, at minimum, comply with any state and local public notice requirements in the planning and implementation activities related to developing and implementing the SWMP. The small MS4 operator must create opportunities, or support activities that are coordinated by citizen groups, for residents and others to become involved with the SWMP. The activities/BMPs must demonstrate an impact on stormwater runoff by improving water quality.

(a) Over the permit term, small MS4 operators shall implement a minimum number of public involvement/participation activities and measurable goals from Table 5 as follows:
(1) Level 1 small MS4: two BMPs;
(2) Levels 2a and 2b small MS4: three BMPs; or
(3) Levels 3 and 4 small MS4: four BMPs.

Table 5: Public Involvement/Participation BMPs

Activity/BMP	**Measurable Goals**
Stream/lake or watershed clean-up events; litter/trash clean-up events such as Adopt-A-Highway, Adopt-A-Spot, Adopt-A-Street, Adopt-A-Stream, etc.	Host or support at a minimum one event for level 1 and 2 MS4s or two events for level 3 and MS4s annually: • To be considered an event, the land area cleaned must be a minimum of: o two acres, o 400 yards of stream/ streambank/riparian area, or o Two miles of roadside • These may be combined (such as one acre of land and 200 yards of stream).
Habitat improvement; Tree planting; Invasive Vegetation removal; Stream restoration.	Host or support at a minimum one event for level 1 and 2 MS4s or two events for level 3 and 4 MS4s annually: • To be considered an event, the project must be a minimum of 0.5 acres or 25 yards. • An event may take place in streams, parks, areas adjacent to public waterways, or other green space. • An event may be a combination of locations and areas.
Volunteer water quality monitoring such as Texas Stream Team.	Host or support a minimum one event annually. To be considered an event, the monitoring must be conducted at minimum once each year.

Activity/BMP	Measurable Goals
Stormwater related speaker series.	Provide or support a minimum of one session for level 1 and 2 MS4s or two sessions for level 3 and 4 MS4s each year. These may be different speakers or audiences.
MS4 area-wide stormwater survey for input on program implementation.	Provide or support a minimum of one public survey annually for input on the program implementation to be distributed to at least 75% of the intended audience. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.
Hold events to train residents or work a project for homeowner associations (HOAs), or other public groups to cover stormwater topics such as: Building rain barrels; Fertilizer application training; Rain garden/bio retention creation or maintenance; How to recognize illicit discharge activities and communicate observations to appropriate MS4 staff.	Provide or support at minimum one project or training annually.
Educational display/booth at a school, public event, or similar event to provide information or displays that work to improve public understanding of issues related to water quality.	Provide or support one booth or display at minimum annually. The booth or display must be staffed during the time which the event is open to the public.
Public meeting for input on the program implementation such as a city council meeting, board meeting, or stakeholder meeting.	Host or support a minimum of one meeting annually for input on the program implementation to be advertised to at least 75% of the intended audience. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.

(b) Small MS4 operators shall create/host or support the public involvement/participation BMP(s) in Part IV.D.2.(a) and Table 5. To be considered support given to the coordinating groups the small MS4 operator shall at minimum conduct at least one of the following or similar:
(1) Plan, or assist with planning, the event or activity;
(2) Contribute supplies, materials, tools, or equipment;
(3) Provide assistance from MS4 staff during the activity;
(4) Provide assistance with recruiting volunteers for events;
(5) Make a space available for projects, meetings, or events;
(6) Advertisement for the events;
(7) Supply disposal services;

(8) Arrange land or stream access;
(9) Provide financial support; or
(10) Provide donations of goods and services such as food.

(c) Small MS4 operators may partner with other MS4 operators to maximize the program and cost effectiveness of the required public involvement/participation activities.

B. Proposed BMPs, Activities, & Measurable Goals

2.1 Water Quality Monitoring

2.1.1 Description

The District will host or support a minimum of one water quality monitoring event annually.

2.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: For every permit year, host or support one event annually, such as Texas Stream Team.

2.1.3 Responsible Persons

The Board of Directors, acting through the District Engineer has responsibility for implementation of BMP 2.1 Water Quality Monitoring to meet Measurable Goal 2.1.2.

2.2 Stormwater Survey

2.2.1 Description

The District will provide or support a minimum of one public survey annually for input on the program implementation to be distributed to at least 75% of the intended audience. This public survey will be provided at each District Board Meeting, held monthly.

2.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Complete and document activity. Maintain log of recipients and completed surveys. Develop and maintain a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.

2.2.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 2.2 Stormwater Survey to meet Measurable Goal 2.2.2.

2.3 Public Meeting

2.3.1 Description

The District will host or support a minimum of one meeting annually for input on the program implementation to be advertised to at least

75% of the intended audience. This public meeting will be integrated within the District Board Meetings, held monthly.

2.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Maintain a log of 100% of the public meetings occurring during board meetings. Maintain a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.

2.3.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 2.3 Public Meeting to meet Measurable Goal 2.3.2.

3. Illicit Discharge Detection and Elimination (IDDE)

A. TPDES Phase II Permit Requirement (Part IV.D.3)

(a) Program Development

(1) All permittees shall develop, implement, and enforce a program to investigate, detect, and eliminate illicit discharges into the small MS4. The program must include a plan to detect and address non-stormwater discharges, including illegal dumping to the small MS4.

The Illicit Discharge Detection and Elimination (IDDE) program must include the following:

(a) A current and accurate MS4 map (see Part IV.D.3.(c)(1));

(b) Methods for informing and training MS4 field staff (see Part IV.D.3.(c)(2));

(c) Methods for facilitating public reporting of illicit discharges and illegal dumping (see Part IV.D.3.(c)(3));

(d) Procedures for responding to illicit discharge, illegal dumping, and spills (see Part IV.D.3.(c)(4));

(e) Procedures for tracing the source of an illicit discharge and illegal dumping (see Part IV.D.3.(c)(5));

(f) Procedures for removing the source of the illicit discharge and illegal dumping (see Part IV.D.3.(c)(5));

(g) Conduct inspections in response to complaints including follow-up inspections, and procedures for inspections (see Part IV.D.3.(c)(6));

(h) For Levels 2, 3 and 4, if applicable, procedures to prevent and correct any leaking on-site sewage disposal systems that discharge into the small MS4;

(i) For Level 4, procedures for identifying priority areas within the small MS4 likely to have illicit discharges and illegal dumping, and a list of all such areas identified in the small MS4 (see Part IV.D.3.(e)(1));

(j) For Level 4, dry weather field screening to detect illicit discharges and illegal dumping (see Part IV.D.3.(e)(2)); and

(k) For Level 4, procedures to reduce the discharge of floatables in the small MS4 (see Part IV.D.3.(e)(3)).

(2) For non-traditional small MS4s, if illicit connections, illegal dumping, or illicit discharges are observed related to another operator's MS4, the permittee shall notify the other MS4 operator within 48 hours of discovery. If notification to the other MS4 operator is not practicable, then the permittee shall notify the appropriate TCEQ Regional Office of the possible illicit connection, illegal dumping, or illicit discharge.

(3) If another MS4 operator notifies the permittee of an illegal connection, illegal dumping, or illicit discharge to the small MS4, then the permittee shall follow the requirements specified in Part IV.D.3.(c)(5).

(b) Allowable Non-Stormwater Discharges

Non-stormwater discharges listen in Part II.D do not need to be considered by the permittee as an illicit discharge requiring elimination unless the permittee or the TCEQ identifies the discharge as a significant source of pollutants to the small MS4.

(c) Requirements for All Permittees

All permittees shall meet all the following requirements, including Table 6.

(1) MS4 Mapping

All permittees shall maintain a current and accurate MS4 map, which must be located on site and available for review by TCEQ. The MS4 map must show at a minimum the following information:

(a) The location of all small MS4 outfalls that are operated by the permittee and that discharge into Waters of the U.S.;

(b) The location and name of all surface waters receiving discharges from the small MS4 outfalls; and

(c) Priority areas identified under Part IV.D.3.(e)(1), if applicable.

(2) Education and Training

All permittees shall implement a method for informing or training all the permittee's field staff that may come into contact with or otherwise observe an illicit discharge, illegal dumping, or illicit connection to the small MS4 as part of their normal job responsibilities. Training program materials and attendance lists must be maintained onsite and made available for review by the TCEQ.

(3) Public Reporting of Illicit Discharges and Spills

All permittees shall publicize and facilitate public reporting of illicit discharges, illegal dumping, or water quality impacts associated with discharges into or from the small MS4. The permittee shall provide a central contract point to receive reports; for example, by including a telephone number for complaints and spill reporting.

(4) All permittees shall develop and maintain onsite procedures for responding to illicit discharges, illegal dumping, and spills.

(5) Source Investigation and Elimination

a. Minimum Investigation Requirements – Upon becoming aware of an illicit discharge or illegal dumping, all permittees shall conduct an investigation to identify and locate the source of such illicit discharge or illegal dumping as soon as practicable.

   (i) All permittees shall prioritize the investigation of discharges based on their relative risk of pollution. For example, sanitary sewage may be considered a high priority discharge.
   (ii) All permittees shall report to the TCEQ immediately upon becoming aware of the occurrence of any illicit flows believed to be an immediate threat to human health or the environment.
   (iii) All permittees shall track all investigations and document, at a minimum, the date(s) the illicit discharge or illegal dumping was observed; the results of the investigation; any follow-up of the investigation' and the date the investigation was closed.

b. Identification and Investigation of the Source of the Illicit Discharge – All permittees shall investigate and document the source of illicit discharges and illegal dumping where the permittees have jurisdiction to complete such an investigation. If the source of illicit discharge or illegal dumping extends outside the permittee's boundary, all permittees shall notify the adjacent permitted MS4 operator or the appropriate TCEQ Regional Office.
c. Corrective Action to Eliminate Illicit Discharge

If and when the source of the illicit discharge or illegal dumping has been determined, all permittees shall immediately notify the responsible party of the problem, and shall require the responsible party to perform all necessary corrective actions to eliminate the illicit discharge and illegal dumping.

(6) Inspections – The permittee shall conduct inspections, in response to complaints, and shall conduct follow-up inspections to ensure that corrective measures have been implemented by the responsible party.

The permittee shall develop written procedures describing the basis for conducting inspections in response to complaints and conducting follow-up inspections.

Table 6: Required IDDE BMPs

Activity/BMP	**Measurable Goals**
Maintain a current and accurate MS4 map as described in Part IV.D.3.(c)(1).	Review and update, as necessary, at least one time annually to include features which have been added, removed, or changed.
Conduct training for all the permittee's field staff as described in Part IV.D.3.(c)(2). Training may be conducted in person or using self-paced training materials such as videos or reading materials.	Conduct a minimum of one training annually for 100% of MS4 field staff that may come into contact with or otherwise observe an illicit discharge, illegal dumping, or illicit connection to the small MS4 as part of their normal job responsibilities.
Maintain and publicize a public reporting method for the public to report illicit discharges, illegal dumping, or water quality impacts associated with discharges into or from the small MS4 such as a reporting hotline, online form, or other similar mechanism as described in Part IV.D.3.(c)(3).	Maintain a minimum of one public reporting mechanism 100% of the time during the permit term. Publicize the public reporting mechanism a minimum of two times annually in a method designed to reach the majority of the intended audience. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness. In addition, if the MS4 operator has a public website, the public reporting mechanism must be publicized on the public website 100% of the time during the permit term.
Develop and maintain procedures for responding to illicit discharges, illegal dumping, and spills as described in Part IV.D.3.(c)(4).	Review and update the procedures at least one time annually to address changes and make improvements to the established procedures where applicable.

Activity/BMP	Measurable Goals
Source investigation and elimination of illicit discharges and illegal dumping as described in Part IV.D.3.(c)(5).	Respond to 100% of known illicit discharges and illegal dumping incidents each year to investigate sources (or some Level 2b MS4s must notify the appropriate agency with the authority to act). Respond to 100% of high priority discharges each year, such as sanitary sewer discharges within 24 hours (or some Level 2b MS4s must notify the appropriate agency with the authority to act.) For 100% of known illicit discharges or illegal dumping incidents where the small MS4 does not have jurisdiction, notify the adjacent MS4 operator or the applicable TCEQ regional office each year. Notify TCEQ immediately of 100% of illicit flows believed to be an immediate threat to human health or the environment throughout the permit term.
Corrective Action to eliminate illicit discharges and illegal dumping as described in Part IV.D.3.(c)(5).	For 100% of illicit discharges or illegal dumping where a source has been determined, notify the responsible party of the problem within 24 hours. Require the responsible party to perform all necessary corrective actions to eliminate the illicit discharge.
Inspection Procedures as described in Part IV.D.3.(c)(6).	Review and update the procedures at least one time annually to address changes and make improvements to the established procedures where applicable.
Inspections in response to complaints as described in Part IV.D.3.(c)(6).	Conduct inspections in response to 100% of complaints each year according to the established procedures (or some Level 2b MS4s must notify the appropriate agency with the authority to act). Conduct follow-up inspections in 100% of cases each year where necessary as described in the established procedures (except for some Level 2b MS4s without the appropriate authority to act).

B. Proposed BMPs, Activities, & Measurable Goals

3.1 MS4 Mapping

3.1.1 Description

The District maintains a map of its MS4/storm sewer system. The map will be updated annually and modified to include information on all outfalls and the bodies of water that the outfalls drain to as well as the locations and types of water.

3.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Review and update storm sewer map as needed once every year. Maintain a log of 100% of revisions with dates.

3.1.3 Responsible Persons

The Board of Directors, acting through the Engineer for the District, has responsibility for implementation of BMP 3.1 MS4 Mapping to meet Measurable Goal 3.1.2.

3.2 Education and Training

3.2.1 Description

The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe an illicit discharge or illicit connection (BMP 3.0), implementing the construction stormwater program (BMP 4.0), and implementing pollution prevention and good housekeeping practices (BMP 6.0). A log of attendees will be maintained for each annual meeting.

3.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Complete and document activity. Maintain log of 100% of training dates and attendees.

3.2.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 3.2 Education and Training to meet Measurable Goal 3.2.2.

3.3 Public Reporting of Illicit Discharges and Spills

3.3.1 Description

The District will publicize a hotline number on the District's website from BMP No. 1 to report illicit discharges. The hotline will facilitate public reporting of illicit discharges or water quality impacts associated with discharges into or from the small MS4. The District will provide a central contact point to receive reports.

3.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Maintain a log of 100% of advertisements for phone line and methods. Document 100% of all complaints received and any actions that were taken.

3.3.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 3.3 Public Reporting of Illicit Discharges and Spills to meet Measurable Goal 3.3.2.

3.4 Procedures for Responding to Illicit Discharges and Spills

3.4.1 Description

The District shall develop and maintain on-site procedures for responding to illicit discharges and spills.

3.4.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Develop on-site procedures for responding to illicit discharges and spills.
- Permit Year 2025-2029: Maintain records of 100% of responses to illicit discharges and spills.
- Permit Year 2025-2029: Review procedures annually and make changes as needed.

3.4.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 3.4 Procedures for Responding to Illicit Discharges and Spills to meet Measurable Goal 3.4.2.

3.5 Program to Detect and Eliminate Illicit Discharges Including Source Investigation

3.5.1 Description

The District will develop a program to detect and address non-storm water discharges including illegal dumping into the storm sewer system. The program will include annual investigation/inspection of businesses that discharge to the storm sewer facilities, annual dry weather inspection of the storm sewer system, and response to complaints from the public. It will also provide contact information for reporting illicit discharges or dumping. At a minimum the investigations/inspections will:

- Prioritize the investigation/inspection of discharges based on their relative risk of pollution.
- Report to the TCEQ immediately upon becoming aware of the occurrence of any illicit flows believed to be an immediate threat to human health or the environment.

- Track all investigations and document, at a minimum, the date(s) the illicit discharge was observed; the results of the investigation; any follow-up of the investigation; and the date the investigation was closed.

3.5.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Develop a schedule for annual inspections of 100% of the District's storm sewer facilities.
- Permit Year 2025: Develop procedures for elimination and investigation of illicit discharge.
- Permit Year 2025-2029: Inspect 100% of storm sewer facilities and investigate 100% of all reported illicit discharges.
- Permit Year 2025-2029: Document 100% of inspections and investigations.
- Permit Year 2025-2029: Annually review the schedule and procedures and make changes as needed.

3.5.3 Responsible Persons

The Board of Directors, acting through the Engineer and Operator for the District, has responsibility for implementation of BMP 3.5 Program to Detect and Eliminate Illicit Discharges to meet Measurable Goal 3.5.2.

3.6 Prevention and Correction of Leaking On-Site Sewage Facilities

3.6.1 Description

The District will develop a program to prevent and correct onsite leaking at its sewage disposal systems. The program will include annual inspections of the District's sewage facilities as well as procedures in order to correct any onsite leaking at the facilities.

3.6.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Develop a schedule for annual inspections of 100% of the District's sewage facilities and procedures to correct any onsite leaking.
- Permit Year 2025-2029: Inspect 100% of the District's sewage facilities and maintain a log of 100% of all corrective measures taken.
- Permit Year 2025-2029: Review the schedule and procedures and make improvements wherever necessary.

3.6.3 Responsible Persons

The Board of Directors, acting through the Operator and Engineer for the District, has responsibility for implementation of BMP 3.6 Prevention and Correction of Leaking On-Site Sewage Facilities to meet Measurable Goal 3.6.2.

4. Construction Site Stormwater Runoff Control

A. TPDES Phase II Permit Requirement (Part IV.D.4)

(a) Requirements and Control Measures

All permittees shall develop, implement, and enforce a program requiring operators of small and large construction activities to select, install, implement, and maintain stormwater control measures that prevent illicit discharges to the MEP. The program must include the development and implementation of an ordinance or other regulatory mechanism, as well as sanctions to ensure compliance to the extent allowable under state, federal, and local law, to require erosion and sediment control.

If TCEQ waives requirements for stormwater discharges associated with small construction from a specific site(s), the permittee is not required to enforce the program to reduce pollutant discharges from such site(s).

(b) Requirements for all Permittees

All permittees shall meet the following requirements including Table 9.

(1) All permittees shall require that construction site operators implement appropriate erosion and sediment control BMPs. The permittee's construction program must ensure erosion and sediment controls, soil stabilization, and BMP requirements are effectively implemented for all small and large construction activities discharging to its small MS4 consistent with the TPDES CGP, TXR150000

(2) Prohibited Discharges – The following discharges are prohibited:

a. Wastewater from washout of concrete and wastewater from water well drilling operations, unless managed by an appropriate control;
b. Wastewater from washout and cleanout of stucco, paint, from release oils, and other construction materials;
c. Fuels, oils, or other pollutants used in vehicle and equipment operation and maintenance;
d. Soaps or solvents used in vehicle and equipment washing; and
e. Discharges from dewatering activities, including discharges from dewatering of trenches and excavations, unless managed by appropriate BMPs.

(3) Construction Plan Review Procedures

To the extent allowable by state, federal, and local law, all permittees shall maintain and implement site plan review procedures that describe which plans will be reviewed as well as when an operator may begin construction. For those permittees without legal authority to enforce site plan reviews, this requirement is limited to those sites operated by the permittee and its

contractors and located within the permittee's regulated area. The site plan procedures must meet the following requirements:

a. The site plan review procedures must incorporate consideration of potential water quality impacts.
b. The permittee may not approve any plans unless the plans contain appropriate site-specific construction site control measures that, at a minimum, meet the requirements described in the TPDES CGP, TXR150000.
   The permittee may require and accept a plan, such as a stormwater pollution prevention plan (SWP3), that has been developed pursuant to the TPDES CGP, TXR150000.

(4) Construction Site Inspections and Enforcement

To the extent allowable by state, federal, and local law, all permittees shall implement procedures for inspecting large and small construction projects. Permittees without legal authority to inspect construction sites shall at a minimum conduct inspection of sites operated by the permittee or its contractors and that are located in the permittee's regulated area.

a. The permittee shall conduct inspections based on the evaluation of factors that are a threat to water quality, such as: soil erosion potential; site slope; project size and type; sensitivity of receiving water bodies; proximity to receiving water bodies; non-stormwater discharges; and past record of non-compliance by the operators of the construction site.

b. Inspections must occur during the active construction phase.

   i. All permittees shall develop and implement updated written procedures outlining the inspection and enforcement requirements. These procedures must be maintained on-site or in the SWMP and be made available to TCEQ.
   ii. Inspections of construction sites must, at a minimum:

      1. Determine whether the site has appropriate coverage under the TPDES CGP, TXR150000. If no coverage exists, notify the permittee of the need for permit coverage;
      2. Conduct a site inspection to determine if control measures have been selected, installed, implemented, and maintained according to the small MS4's requirements;
      3. Assess compliance with the permittee's ordinances and other regulations; and
      4. Provide a written or electronic inspection report.

c. Based on site inspection findings, all permittees shall take all necessary follow-up actions (for example, follow-up-inspections or enforcement) to ensure compliance with permit requirements and the SWMP. These follow-up and enforcement actions must be tracked and documentation maintained for review by the TCEQ.

For non-traditional and small MS4s with no enforcement powers, the permittee shall notify the adjacent MS4 operator with enforcement authority or the appropriate TCEQ Regional Office.

(5) Information Submitted By the Public

All permittees shall develop, implement, and maintain procedures for receipt and consideration of information submitted by the public.

(6) MS4 Staff Training

All permittees shall ensure that all staff whose primary job duties are related to implementing the construction stormwater program (including permitting, plan review, construction site inspections, and enforcement) are informed or trained to conduct these activities. The training may be conducted by the permittee or by outside trainers.

Table 9: Required Construction Site Stormwater Runoff Control BMPs

Activity/BMP	**Measurable Goals**
Develop and maintain an ordinance or other regulatory mechanism as described in Part IV.D.4.(a).	Review and update the ordinance or other regulatory mechanism at least one time during the permit term to address changes and make improvements to the ordinance where applicable.
Prohibit discharges as described in Part IV.D.4.(b)(2).	Develop and maintain an ordinance or other regulatory mechanism to prohibit these discharges. Review and update the ordinance or other regulatory mechanism at least one time during the permit term to address changes and make improvements to the ordinance where applicable.
Maintain and implement site plan review procedures that describe which plans will be reviewed as well as when an operator may begin construction as described in Part IV.D.4.(b)(3).	Review and update site plan review procedures at least one time annually to address changes and make improvements to the established procedures where applicable. Implement site plan review procedures for 100% of new construction site plans received each year.
Implement procedures for inspecting large and small construction projects as described in Part IV.D.4.(b)(4).	Review and update inspection procedures at least one time annually to address changes and make

	improvements to the established procedures where applicable.
Conduct construction site inspections as described in Part IV.D.4.(b)(4).	Conduct inspections at a minimum of 80% of active construction sites annually according to the established procedures (or some Level 2b small MS4s must notify the appropriate agency with the authority to act). Each year, conduct follow up inspections in 100% of cases where necessary as described in the established procedures (except for some Level 2b small MS4s without the appropriate authority to act).
Develop, implement, and maintain procedures for receipt and consideration of information submitted by the public as described in Part IV.D.4.(b)(5).	Review and update procedures for the receipt and consideration of information submitted by the public at least one time annually to address changes and make improvements to the established procedures where applicable. Maintain one webpage, hotline, or similar method for receipt of information submitted by the public throughout the permit term.
Conduct training for all the MS4 staff whose primary job duties are related to implementing the construction stormwater program as described in Part IV.D.4.(b)(6). Training may be conducted in person or using self-paced training materials such as videos or reading materials.	Conduct a minimum of one training annually for 100% of MS4 staff whose primary job duties are related to implementing the construction stormwater program.

B. Proposed BMPs, Activities, & Measurable Goals

4.1 Review and Maintain Technical Manual

4.1.1 Description

The District will adopt the City of Houston Stormwater Management Handbook for Construction Activity via District ordinance. The District's ordinance will make complying with the all of the rules, regulations and guidelines of the handbook mandatory for any construction site storm water runoff control and will include authorization to enforce a penalty on those who are found in violation of the handbook. The handbook describes the construction requirement for construction site storm water runoff control. It addresses storm water runoff from construction sites that are one acre and greater, including sites that are part of a larger common plan of development. It describes appropriate erosion, sediment, and waste controls. This manual was selected because Montgomery County does

not have a comparable technical manual. Once a manual is adopted by the county, the District will adopt it in lieu of the City of Houston manual.

4.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Officially adopt the City of Houston Stormwater Management Handbook through District ordinance.
- Permit Year 2025-2029: Inform 100% of contractors to follow for any construction activities.
- Permit Year 2025-2029: Document 100% of violations of the District's manual and any penalties or follow up actions.
- Permit Year 2025-2029: Annually review the Technical Manual and make changes as needed.

4.1.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 4.1 Review and Maintain Technical Manual to meet Measurable Goal 4.1.2.

4.2 Discharge Prohibitions

4.2.1 Description

The District will develop and enforce documentation to ensure prohibited discharges do not occur. This documentation will be provided through BMP 1.1 Webpage Information and BMP 1.4 Public Notice Requirements. This documentation may also be delivered to District residents along with their monthly water bill. The following discharges are prohibited; wastewater from washout of concrete and wastewater from water well drilling operations, unless managed by an appropriate control; wastewater from washout and cleanout of stucco, paint, from release oils, and other construction materials; fuels, oils, or other pollutants used in vehicle and equipment operation and maintenance; soaps or solvents used in vehicle and equipment washing; and discharges from dewatering activities, including discharges from dewatering of trenches and excavations, unless managed by appropriate BMPs.

4.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Maintain a log of 100% of documentation provided on District Website, Public Notices, and with Water Bills.

4.2.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 4.2 Discharge Prohibitions to meet Measurable Goal 4.2.2.

4.3 Reporting Hotline

4.3.1 Description

The District will set up a reporting hotline as a method for the public to report construction site problems or issues.

4.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Maintain a log of 100% of advertisements for phone line and methods. Document 100% of all complaints received and any actions that were taken.

4.3.3 Responsible Persons

The Board of Directors, acting through the Operator of the District, has responsibility for development and implementation of BMP 4.3 Reporting Hotline to meet Measurable Goal 4.3.2.

4.4 Evaluate and Upgrade Site Plan Review and Site Inspection Programs

4.4.1 Description

The District will review and revise current site plan review and inspection programs in order to incorporate new regulations regarding storm water runoff at construction sites. The District will then make appropriate changes to the current program in order to include oversight of the new regulation for construction site storm water management.

4.4.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Once a year evaluate 100% of existing procedures and identify areas needing revision.

4.4.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 4.4 Evaluate and Upgrade Site Plan Review and Site Inspection Program to meet Measurable Goal 4.4.2.

4.5 Contractor Training and Certification

4.5.1 Description

The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe an illicit discharge or illicit connection (BMP 3.0), implementing the construction stormwater program (BMP 4.0), and implementing pollution prevention and good housekeeping practices (BMP 6.0). A log of attendees will be maintained for each annual meeting.

4.5.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Complete and document activity. Maintain log of 100% of training dates and attendees.

4.5.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 4.5 Contractor Training and Certification to meet Measurable Goal 4.5.2.

5. Post Construction Stormwater Management in New Development and Redevelopment

A. TPDES Phase II Permit Requirement (Part IV.D.5)

(a) Post-Construction Stormwater Management Program

All permittees shall meet the requirements below including Table 11.

(1) All permittees shall develop, implement, and enforce a program, to the extent allowable under state, federal, and local law, to control stormwater discharges from new development and redeveloped sites that discharges into the small MS4 that disturb one acre or more, including projects that disturb less than one acre that are part of a larger common plan of development or sale. The program must be established for private and public development sites. The program may utilize an offsite mitigation and payment in lieu of components to address this requirement.

(2) All permittees shall use, to the extent allowable under state, federal, and local law and local development standards, an ordinance or other regulatory mechanism to address post-construction runoff from new development and redevelopment projects. The permittees shall establish, implement, and enforce a requirement that owners or operators of new development and redeveloped sites design, install, implement, and maintain a combination of structural and non-structural BMPs appropriate for the community and that protects water quality. If the construction of permanent structures is not feasible due to space limitations, health and safety concerns, cost effectiveness, or highway construction codes, the permittee may propose an alternative approach to TCEQ.

(b) Requirements for all Permittees

All permittees shall meet all the following requirements including Table 11.

(1) All permittees shall document and maintain records of enforcement actions and make them available for review by the TCEQ.

(2) Long-Term Maintenance of Post-Construction Stormwater Control Measures

All permittees shall, to the extent allowable under state, federal, and local law, ensure the long-term operation and maintenance of structural stormwater control measures installed through one or both of the following approaches:

(a) Maintenance performed by the permittee. (See Part IV.D.6)

(b) Maintenance performed by the owner or operator of a new development or redeveloped site under a maintenance plan. The maintenance plan must be filed in the real property records of the county in which the property is located. The permittee shall require the owner or operator of any new development or redeveloped site to develop and implement a maintenance plan addressing maintenance requirement for any structural control measures installed on site. The permittee shall require operation and maintenance performed is documented and retained on site, such as at the offices of the owner or operator, and made available for review by the small MS4.

Table 11: Required Post Construction Stormwater Management in New Development and Redevelopment BMPs

Activity/BMP	**Measurable Goals**
Develop and maintain an ordinance or other regulatory mechanism as described in Part IV.D.5.(a)(2).	Review and update the ordinance or other regulatory mechanism at least one time during the permit term to address changes and make improvements to the ordinance where applicable.
Document and maintain records of enforcement actions and make them available for review by the TCEQ as described in Part IV.D.5.(b)(1).	Maintain records of 100% of enforcement actions taken each year. Make 100% of enforcement records available to TCEQ for review within 24 hours of request.
Ensure the long term operation and maintenance of structural stormwater control measures installed as described in Part IV.D.5.(b)(2).	Each year, implement a maintenance plan and schedule established by the small MS4 operator addressing 100% of stormwater control measures where the small MS4 operator is responsible for maintenance. Each year, require 100% of the owners or operators of any new development or redeveloped sites to develop and implement a maintenance plan addressing maintenance requirement for any structural control measures installed on site. Require the site owner or operators to maintain documentation, such as a tracking log, onsite of 100% of the maintenance performed and made available for review by the small MS4 operator or TCEQ within 24 hours of the request.

B. Proposed BMPs, Activities, & Measurable Goals

5.1 Evaluate and Upgrade Site Plan Review and Site Inspection Programs

5.1.1 Description

The District will review and revise current site plan review and inspection programs in order to incorporate new regulations regarding storm water runoff at construction sites. The District will then make appropriate changes to the current program in order to include oversight of the new regulation for construction site storm water management.

5.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025-2029: Once a year evaluate 100% of existing procedures and identify areas needing revision.

5.1.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 5.1 Evaluate and Upgrade Site Plan Review and Site Inspection Program to meet Measurable Goal 5.1.2.

5.2 Review and Maintain Technical Manual

5.2.1 Description

The District will adopt the City of Houston Stormwater Management Handbook for Construction Activity via District ordinance. The District's ordinance will make complying with the all of the rules, regulations and guidelines of the handbook mandatory for any construction site storm water runoff control and will include authorization to enforce a penalty on those who are found in violation of the handbook. The handbook describes the construction requirement for construction site storm water runoff control. It addresses storm water runoff from construction sites that are one acre and greater, including sites that are part of a larger common plan of development. It describes appropriate erosion, sediment, and waste controls. This manual was selected because Montgomery County and City of Conroe do not have comparable technical manuals. Once a manual is adopted by either entity, the District will adopt it in lieu of the City of Houston manual.

5.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Officially adopt the City of Houston Stormwater Management Handbook through District ordinance.
- Permit Year 2025-2029: Inform 100% of contractors to follow this manual for any construction activities.

- Permit Year 2025-2029: Document 100% of violations of the District's manual and any penalties or follow up actions.
- Permit Year 2025-2029: Annually review the Technical Manual and make changes as needed.

5.2.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 5.2 Review and Maintain Technical Manual to meet Measurable Goal 5.2.2.

5.3 Long Term Operation and Maintenance

5.3.1 Description

The District will develop a schedule to inspect all of its post construction storm water control measures. Inspections will be done to identify anything obstructing the storm water control measure such as debris or sediment buildup. Inspections will verify that the measures are operational, and maintenance will be done as needed.

5.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Develop a schedule and procedure for annual onsite inspections of 100% of post construction storm water control measures.
- Permit Year 2025-2029: Inspect 100% of post construction storm water control measures. Maintain a log of 100% of inspections and maintenance.
- Permit Year 2025-2029: Annually review the schedule and procedures and make any necessary changes.

5.3.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 5.3 Long Term Operation and Maintenance to meet Measurable Goal 5.3.2.

6. Pollution Prevention and Good Housekeeping for Municipal Operations

A. TPDES Phase II Permit Requirement (Part IV.D.6)

(a) Program Development

All permittees shall develop and implement an operation and maintenance program (O&M), including an employee training component that has the ultimate

goal of preventing or reducing pollutant runoff from municipal activities and municipally owned areas including but not limited to: park and open space maintenance; street, road, or highway maintenance; fleet and building maintenance; stormwater system maintenance; new construction and land disturbances; municipal parking lots; vehicle and equipment maintenance and storage yards; waste transfer stations; and salt/sand storage locations.

(b) Requirements for All Permittees

All permittees shall meet the requirements described below including Table 13.

(1) Permittee-owned Facilities and Control Inventory

All permittees shall develop and maintain an inventory of facilities and stormwater controls that it owns and operates within the regulated area of the small MS4. The inventory must include all applicable permit numbers, registration numbers, and authorizations for each facility or controls. The inventory must be available for review by TCEQ and must include, but is not limited, to the following, as applicable:

a. Composting facilities;
b. Equipment storage and maintenance facilities;
c. Fuel storage facilities;
d. Hazardous waste disposal facilities;
e. Hazardous waste handling and transfer facilities;
f. Incinerators;
g. Landfills;
h. Materials storage yards;
i. Pesticide storage facilities;
j. Buildings, including schools, libraries, police stations, fire stations, and office buildings;
k. Parking lots;
l. Golf courses;
m. Swimming pools;
n. Public works yards;
o. Recycling facilities;
p. Salt storage facilities;
q. Solid waste handling and transfer facilities;
r. Street repair and maintenance sites;
s. Vehicle storage and maintenance yards; and
t. Structural stormwater controls.

(2) Training and Education

All permittees shall inform or train appropriate employees involved in implementing pollution prevention and good housekeeping practices. All

permittees shall maintain attendance list for review by TCEQ when requested.

(3) Disposal of Waste Material – Waste materials removed from the small MS4 must be disposed of in accordance with 30 TAC Chapters 330 or 335, as applicable.

(4) Contractor Requirements and Oversight

a. Any contractors hired by the permittee to perform maintenance activities on permittee-owned facilities must be contractually required to comply with all of the stormwater control measures, good housekeeping practices, and facility-specific stormwater management operating procedures described in Parts IV.D.6.(b)(2)-(6).
b. All permittees shall provide oversight of contractor activities to ensure that contractors are using appropriate control measures and SOPs. Oversight procedures must be maintained on-site and made available for inspection by TCEQ.

(5) Municipal Operation and Maintenance Activities

a. Assessment of permittee-owned operations

All permittees shall evaluate operation and maintenance (O&M) activities for their potential to discharge pollutants in stormwater, including but not limited to:

i. Road and parking lot maintenance, including such areas as pothole repair, pavement marking, sealing, and re-paving;
ii. Bridge maintenance, including such areas as re-chipping, grinding, and saw cutting;
iii. Cold weather operations, including plowing, sanding, and application of deicing and anti-icing compounds and maintenance of snow disposal areas; and
iv. Right-of-way maintenance, including mowing, herbicide and pesticide application, and planting vegetation.

b. All permittees shall identify pollutants of concern that could be discharged from the above O&M activities (for example, metals; chlorides; hydrocarbons such as benzene, toluene, ethyl benzene, and xylenes; sediment; and trash).

c. All permittees shall develop and implement a set of pollution prevention measures that will reduce the discharge of pollutants in stormwater from the above activities. These pollution prevention measures must include at least two of the following:

i. Replacing materials and chemicals with more environmentally friendly materials or methods;
ii. Tracking application of deicing and anti-icing compounds;
iii. Using suspended tarps, booms, or vacuums to capture paint, solvents, rust, paint chips and other pollutants generated by regular bridge maintenance; and
iv. Placing barriers around or conducting runoff away from deicing chemical storage areas to prevent discharge into surface waters.

d. Inspection of pollution prevention measures – All pollution prevention measures implemented at permittee-owned facilities must be visually inspected to ensure they are working properly. The permittee shall develop written procedures that describes frequency of inspections occurring at least one time annually and how they will be conducted. A log of inspections must be maintained and made available for review by the TCEQ upon request.

(6) Structural Control Maintenance

If BMPs include structural controls, maintenance of the controls must be performed by the permittee and consistent with maintaining the effectiveness of the BMP. The permittee shall develop written procedures that define the frequency of inspections occurring at least one time annually and how they will be conducted.

Table 13: Required Pollution Prevention and Good Housekeeping for Municipal Operations BMPs

Activity/BMP	**Measurable Goals**
Permittee-owned Facilities and Control Inventory as described by Part IV.D.6.(b)(1).	Develop and maintain an annual inventory for 100% of the small MS4 owned and operated facilities and controls in the small MS4 area. Review and update the inventory at least one time annually to address changes or additions to the facilities and controls where applicable.
Training and Education as described in Part IV.D.6.(b)(2). Training may be conducted in person or using self-paced training materials such as videos or reading materials.	Conduct a minimum of one training annually for 100% of employees involved in implementing pollution prevention and good housekeeping practices. For small MS4s which use only contractors to implement pollution prevention and good housekeeping practices, ensure training of 100% of applicable contract staff is conducted at least one time annually using contract language or another similar method.
Disposal of Waste Material as described in Part IV.D.6.(b)(3).	Ensure that 100% of waste from the MS4 is disposed of in accordance with 30 TAC Chapters 330 or 335, as applicable each year.

Activity/BMP	Measurable Goals
Contractor Requirements and Oversight as described in Part IV.D.6.(b)(4).	Each year, ensure that 100% of contractors hired by the MS4 to perform maintenance activities on permittee-owned facilities is contractually required to comply with all of the stormwater control measures, good housekeeping practices, and facility-specific stormwater management operating procedures described in Parts IV.D.6.(b)(2)-(6). Implement oversight procedures of contractor activities in 100% of contracts to ensure that contractors are using appropriate control measures and SOPs each year. Oversight procedures must be maintained on-site 100% of the time and made available for review by TCEQ within 24 hours of request.
Assessment of permittee-owned operations as described in Part IV.D.6.(b)(5)a.	Evaluate 100% of O&M activities, in conjunction with procedure reviews if appropriate, for their potential to discharge pollutants in stormwater annually including but not limited to: • Road and parking lot maintenance, including such areas as pothole repair, pavement marking, sealing, and re-paving; • Bridge maintenance, including such areas as re-chipping, grinding, and saw cutting; • Cold weather operations, including plowing, sanding, and application of deicing and anti-icing compounds and maintenance of snow disposal areas; and • Right-of-way maintenance, including mowing, herbicide and pesticide application, and planting vegetation.
Identify pollutants of concern as described in Part IV.D.6.(b)(5)b.	Identify pollutants of concern that could be discharged from all of the O&M activities described in Part IV.D.6.(b)(5)b and maintain a list of 100% of the pollutants identified. Including for example, metals; chlorides; hydrocarbons such as benzene, toluene, ethyl benzene, and xylenes; sediment; and trash. Review and update the pollutants of concern list at least one time annually to address changes or additions to the O&M activities where applicable.

Activity/BMP	Measurable Goals
Pollution Prevention Measures as described in Part IV.D.6.(b)(5)c.	Develop and implement a set of pollution prevention measures that will reduce the discharge of pollutants in stormwater from the permittee-owned operations. Implement at least two of the following pollution prevention measures: Replace at least 50% of the MS4's materials and chemicals with more environmentally friendly materials or methods by the end of the permit term; Track 100% of the application of deicing and anti-icing compounds in the MS4 area and record the amount of compound used for each application annually; Use suspended tarps, booms, or vacuums to capture paint, solvents, rust, paint chips and other pollutants during 80% of regular bridge maintenance each year; and Place barriers around or conduct runoff away from 100% of deicing chemical storage areas to prevent discharge into surface waters each year.
Inspection of Pollution Prevention Measures as described in Part IV.D.6.(b)(5)d.	At least one time annually, visually inspect 100% of pollution prevention measures implemented at permittee-owned facilities to ensure they are working properly. Develop and maintain written procedures that describe the frequency of inspections and how they will be conducted. Review and update the inspection procedures at least one time annually to address changes or additions to the pollution prevention measures. Maintain a log of 100% of the inspections conducted annually and make the log available for review by the TCEQ within 24 hours of a request.

Activity/BMP	Measurable Goals
Structural Control Maintenance as described by Part IV.D.6.(b)(6).	At least one time annually, perform maintenance of 100% of the structural controls which require maintenance. Maintenance must follow a plan and schedule developed by the small MS4 operator to be consistent with maintaining the effectiveness of the BMP. The permittee shall develop and maintain written procedures that define the frequency of inspections and how they will be conducted. Review and update the maintenance procedures at least one time annually to address changes or additions to the pollution prevention measures.

B. Proposed BMPs, Activities, & Measurable Goals

6.1 Storm Sewer and Drainage System Inspection and Maintenance Program

6.1.1 Description

The District will develop a program to inspect the storm sewer system including all pipes, culverts, inlets, drainage channels and detention facilities including proper removal and disposal of waste from the storm sewer system. The program will include procedures of proper waste disposal of dredge spoil, sediment, and floatables in a landfill. The inspections will look for possible problems, leaks, clogs, and damage to structures and debris. The District will inspect a portion of its system monthly to complete the entire system before the end of the permit term.

6.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Receive TCEQ authorization to proceed with SWMP.
- Permit Year 2026: Develop program to inspect 100% of the storm sewer system.
- Permit Year 2027-2029: Inspect 100% of the storm sewer system and evaluate frequency of inspections and make changes to schedule as needed.

6.1.3 Responsible Persons

The Board of Directors, acting through the Engineer for the District, has responsibility for implementation of BMP 6.1 Storm Sewer and Drainage System Inspection and Maintenance Program to meet Measurable Goal 6.1.2.

6.2 Good Housekeeping Operations at District Owned Facilities

6.2.1 Description

The District will conduct an internal audit of District owned facilities and identify areas that may have potential impact on storm water quality or illicit discharges. The District will also evaluate the condition of and presence of spill response kits at District facilities as well as properly removing and disposing of any dredge spoil, accumulated sediment, and floatables found during inspections in a landfill. Appropriate BMPs will be developed and implemented to reduce pollutants and protect water quality. District owned facilities include a Water Plant, a Wastewater Treatment Plant, and two (2) Lift Stations.

6.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Receive TCEQ authorization to proceed with SWMP.
- Permit Year 2026: Develop inventory on 100% of facilities and SWQ features.
- Permit Year 2027: Conduct internal audit of 100% of District owned facilities. Evaluate 100% of existing operations, including number of spill kits needed, and develop appropriate BMPs.
- Permit Year 2028-2029: Acquire any new material needed to meet proposed BMPs for 100 % of District owned facilities and implement changes.

6.2.3 Responsible Persons

The Board of Directors, acting through the Engineer for the District, has responsibility for implementation of BMP 6.2 Good Housekeeping Operations at District Owned Facilities to meet Measurable Goal 6.2.2.

6.3 Field Staff and Operator Training

6.3.1 Description

The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe an illicit discharge or illicit connection (BMP 3.0), implementing the construction stormwater program (BMP 4.0), and implementing pollution prevention and good housekeeping practices (BMP 6.0). A log of attendees will be maintained for each annual meeting.

6.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Receive TCEQ authorization to proceed with SWMP.
- Permit Year 2026: Obtain training materials and perform training. Maintain log of 100% of training dates and attendees.

- Permit Year 2027-2029: Update training materials as needed and perform training on an annual basis. Maintain log of 100% of training dates and attendees.

6.3.3 Responsible Persons

The Board of Directors, acting through the Operator for the District, has responsibility for implementation of BMP 6.3 Field Staff and Operator Training to meet Measurable Goal 6.3.2.

7. Discharges to Watersheds with Approved TMDLs

A. Impaired Water Bodies and TMDL Requirements (Part III.A)

Discharges of the pollutant(s) of concern to impaired water bodies for which there is a TCEQ and EPA approved TMDL are not eligible for this general permit unless they are consistent with the approved TMDL. A water body is impaired for purposes of the permit if it has been identified, pursuant to the latest TCEQ and EPA approved CWA §303(d) list or the *Texas Integrated Report of Surface Water Quality for CWA Sections 305(b) and 303(d)* which lists the category 4 and 5 water bodies, as not meeting Texas Surface Water Quality Standards.

The permittee shall check annually, in conjunction with preparation of the annual report, whether an impaired water within its permitted area has been added to the latest EPA approved 303(d) list or the *Texas Integrated Report of Surface Water Quality for CWA Sections 305(b) and 303(d)* which lists the category 4 and 5 water bodies. Within two years following the approval date of the new list(s) of impaired waters, the permittee shall comply with the requirements of Part III.B (with the exception of 1.(c), and shall identify any newly listed waters in the annual report (consistent with Part V.B.2.f) and SWMP (consistent with Part IV.C.2.f).

The permittee shall control the discharges of pollutant(s) of concern to impaired waters and waters with approved TMDLs as provided in sections (a) and (b) below, and shall assess the progress in controlling those pollutants.

a. Discharges to Water Quality Impaired Water Bodies with an Approved TMDL

If the small MS4 discharges to an impaired water body with an approved TMDL, where stormwater has the potential to cause or contribute to the impairment, the permittee shall include in the SWMP controls targeting the pollutant(s) of concern along with any additional or modified controls required in the TMDL and this section.

The SWMP and required annual reports must include information on implementing any targeted controls required to reduce the pollutant(s) of concern as described below:

(1) Targeted Controls

The SWMP must include a detailed description of all targeted controls to be implemented, including at a minimum, expanding or modifying the following:

(a) Existing Public Education and Outreach and Public Involvement/Participation programs to reduce the discharge of POCs,
(b) Existing Illicit Discharge Detection and Elimination program to specifically address the POCs, and
(c) Existing ordinances or other regulatory mechanisms to require the reduction or control of POCs, enforcement procedures for noncompliance, and develop additional ordinances, or other regulatory mechanisms, as necessary.

(2) Measurable Goals

For each targeted control, the SWMP must include a measurable goal and an implementation schedule describing activities/BMPs to be implemented during each year of the permit term.

(3) Identification of Benchmarks

The SWMP must identify a benchmark for the pollutant(s) of concern. Benchmarks are designed to assist in determining if the BMPs established are effective in addressing the pollutant(s) of concern in stormwater discharge(s) from the MS4 to the maximum extent practicable (MEP). The BMPs addressing the pollutant of concern must be re-evaluated on an annual basis for progress towards the benchmarks and modified as necessary within an adaptive management framework. These benchmarks are not numeric effluent limitations or permit conditions but intended to be guidelines for evaluating progress towards reducing pollutant discharges consistent with the benchmarks. The exceedance of a benchmark is not a permit violation and does not in itself indicate a violation of instream water quality standards.

The benchmark must be determined based on one of the following options:

a. If the MS4 is subject to a TMDL that identifies a Waste Load Allocation(s) (WLA) for permitted MS4 stormwater sources, then the SWMP may identify it as the benchmark. Where an aggregate allocation is used as a benchmark, all affected MS4 operators are jointly responsible for progress in meeting the benchmark and shall (jointly or individually) develop a monitoring/assessment plan as required in Part III.A.6.

(1) When TCEQ revises a TMDL WLA identified by the MS4 to decrease the load, permittees must revise the SWMP and submit an NOC to

identify the revised WLA within 90 days of TCEQ publishing the change.

(2) When TCEQ revises a TMDL WLA identified by the MS4 to increase the load, permittees are not required to update the SWMP or submit an NOC to identify the revised WLA until the next permit term.

b. Alternatively, if multiple small MS4s are discharging into the same impaired water body with an approved TMDL, with an aggregate WLA for all permitted stormwater MS4s, then the MS4s may combine or share efforts to determine an alternative sub-benchmark value for the pollutant(s) of concern (e.g., bacteria) for their respective MS4. The SWMP must clearly define this alternative approach and must describe how the sub-benchmark value would cumulatively support the aggregate WLA. Where an aggregate benchmark has been broken into sub-benchmark values for individual MS4s, each permittee is only responsible for progress in meeting its sub-benchmark value.

(4) Annual Report

The annual report must include an analysis of how the selected activities/BMPs will be effective in contributing to achieving the benchmark value.

(5) Impairment for Bacteria

If the pollutant of concern is bacteria, the permittee shall implement BMPs addressing each of the below areas, as applicable, in the SWMP and implement as appropriate. If a TMDL Implementation Plan (I-Plan) is available, the permittee must do one of the following: (1) refer to the I-Plan for appropriate BMPs, or (2) implement alternative equivalent BMPs. Table 1 below includes the appropriate alternative equivalent BMPs to implement for item (2) above or when a TMDL I-Plan is not available. Where BMPs included in the TMDL I-Plan for item (1) above are completed or where the I-Plan does not address all the below areas, the permittee shall refer to Table 1 for the appropriate BMPs to implement so that each of the areas below are addressed, as applicable.

The SWMP and annual report must include the selected BMPs. Permittees may not exclude BMPs associated with the minimum control measures (MCMs) required under 40 CFR § 122.34 from their list of BMPs.

The BMPs shall, as appropriate, address the following including Table 1.:

a. Sanitary Sewer Systems
   - (i) Make improvements to sanitary sewers to reduce overflows;
   - (ii) Address lift station inadequacies;
   - (iii) Improve reporting of overflows; and
   - (iv) Strengthen sanitary sewer use requirements to reduce blockage from fats, oils, and grease.

b. On-site Sewage Facilities (for entities with appropriate jurisdiction)
    (i) Identify and address failing systems; and
    (ii) Address inadequate maintenance of On-Site Sewage Facilities (OSSFs).

c. Illicit Discharges and Dumping

    Place additional effort to reduce waste sources of bacteria; for example, from septic systems, grease traps, and grit traps.

d. Animal Sources

    Expand existing management programs to identify and target animal sources such as zoos, pet waste, and horse stables.

e. Residential Education

    Increase focus to educate residents on:
    (i) Bacteria discharging from a residential site either during runoff events or directly;
    (ii) Fats, oils, and grease clogging sanitary sewer lines and resulting overflows;
    (iii) Maintenance and operation of decorative ponds; and
    (iv) Proper disposal of pet waste.

Table 1: Alternative Equivalent BMPs for Bacteria Impaired Water Bodies

Activity/BMP	**Measurable Goal**
Sanitary Sewer Systems as described by Part III.A.5.(a).	Conduct a review of 100% of the sanitary sewer system in the MS4 area within the impairment watershed to identify areas for improvement within the first two years of the permit term. Initiate all feasible improvement projects by the end of the permit term. Conduct weekly lift station inspections at 100% of the MS4 owned and operated lift stations in the MS4 area within the impairment watershed each year. Investigate and address 100% of sanitary sewer overflow complaints identified through the public reporting mechanism implemented by the MS4 each year. Strengthen sanitary sewer use requirements to reduce blockage from fats, oils, and grease by reviewing and updating ordinances or other regulatory mechanisms and inspection programs at least one time annually.
On Site Sewage Facilities (OSSFs) as described by Part III.A.5.(b).	Develop and implement procedures to screen 20% of the MS4 area within the impairment watershed annually to identify failing OSSFs. • Maintain an inventory of 100% of the identified OSSFs and their status each year. o Review and update this inventory at least one time each year to address changes or additions. • Address 100% of failing OSSFs each year by requiring the responsible party to perform all necessary corrective actions to eliminate the illicit discharge. Investigate and address 100% of OSSF complaints identified through the public reporting mechanism implemented by the MS4 each year.
Illicit Discharges and Dumping as described by Part III.A.5.(c).	Ensure 100% of procedures and ordinances or other regulatory mechanisms established for BMPs in MCM 3: Illicit Discharge Detection and Elimination address discharges that may contribute bacteria including from OSSFs, grease traps, and grit traps.

Activity/BMP	Measurable Goals
Animal Sources as described by Part III.A.5.(d).	Implement at least one of the following: • Provide and maintain at least one pet waste station in 100% of public parks or similar greenspaces in the MS4 area within the impairment watershed each year. • Assess and address, if feasible, 100% of complaints received about feral hogs in the MS4 area within the impairment watershed each year. If infeasible to address the complaint, maintain documentation of the reason. Prohibit the feeding of ducks and geese in 100% of public parks or similar greenspaces the MS4 area within the impairment watershed each year. • Develop and distribute educational materials related to animal sources of bacteria to 75% of the intended audiences identified by the MS4 in MCM 1: Public Education and Outreach each year. Develop and implement a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.
Residential Education as described by Part III.A.5.(e).	Implement at least one additional BMP from MCM 1: Public Education and Outreach and Table 4 annually (e.g., a Level 1 small MS4 operator must implement at least four total BMPs under MCM 1 each year in the permit cycle instead of the three BMPs required by Part IV.D.1.(a)3.b). In addition, ensure at least one of the BMPs implemented for MCM 1: Public Education and Outreach focuses on at least one of the following: • Bacteria discharging from a residential site either during runoff events or directly; • Fats, oils, and grease clogging sanitary sewer lines and resulting overflows; • Identifying and reporting illicit discharges or illegal dumping; • Maintenance and operation of decorative ponds; and • Proper disposal of pet waste.

(6) Monitoring or Assessment of Progress

The permittee shall develop a Monitoring/Assessment Plan to monitor or assess progress in achieving benchmarks and determine the effectiveness of BMPs, and shall include documentation of this monitoring or assessment in the SWMP and annual reports. In addition, the SWMP must include methods to be used.

a. The permittee may use either of the following methods to evaluate progress towards the benchmark and improvements in water quality in achieving the water quality standards as follows:

   1. Evaluating Program Implementation Measures

      The permittee may evaluate and report progress towards the benchmark by describing the activities and BMPs implemented, by identifying the appropriateness of the identified BMPs, and by evaluating the success of implementing the measurable goals.

      The permittee may assess progress by using program implementation indicators such as: (1) number of sources identified or eliminated; (2) decrease in number of illegal dumping; (3) increase in illegal dumping reporting; (4) number of educational opportunities conducted; (5) reductions in sanitary sewer flows (SSOs); or, (6) increase in illegal discharge detection through dry screening, etc.; or

   2. Assessing Improvements in Water Quality

      The permittee may assess improvements in water quality by using available data for segment and assessment units of water bodies from other reliable sources, or by proposing and justifying a different approach such as collecting additional instream or outfall monitoring data, etc. Data may be acquired from TCEQ, local river authorities, partnerships, and/or other local efforts as appropriate.

b. Progress towards achieving the benchmark shall be reported in the annual report. Annual reports shall report the benchmark and the year(s) during the permit term that the MS4 conducted additional sampling or other assessment activities.

(7) Observing no Progress Towards the Benchmark

If, by the end of the third year from the effective date of the permit, the permittee observes no progress toward the benchmark either from program implementation or water quality assessments as described in Part II.D.4(a)(6), the permittee shall identify alternative focused BMPs that address new or increased efforts towards the benchmark or, as appropriate, shall develop a new approach to identify the most significant sources of the pollutant(s) of concern and shall develop alternative focused BMPs for those (this may also include information that identifies issues beyond the MS4's control). These revised BMPs must be included in the SWMP and subsequent annual reports.

Where the permittee originally used a benchmark value based on an aggregated WLA, the permittee may combine or share efforts with other MS4s discharging to the same watershed to determine an alternative sub-benchmark value for the pollutant(s) of concern for their respective MS4s, as described in Part II.D.4(a)(3)(b) above. Permittees must document, in their SWMP for the next permit term, the proposed schedule for the development and subsequent adoption of alternative sub-benchmark value(s) for the pollutant(s) of concern for their respective MS4s and associated assessment of progress in meeting those individual benchmarks.

b. Discharges Directly to Water Quality Impaired Water Bodies without an Approved TMDL

The permittee shall also determine whether the permitted discharge is directly to one or more water quality impaired water bodies where a TMDL has not yet been approved by TCEQ and EPA. If the permittee discharges directly into an impaired water body without an approved TMDL, the permittee shall perform the following activities:

(1) Discharging a Pollutant of Concern

a. The permittee shall determine whether the small MS4 may be a source of the pollutant(s) of concern by referring to the CWA §303(d) list and then determining if discharges from the MS4 would be likely to contain the pollutant(s) of concern at levels of concern.
b. If the permittee determines that the small MS4 may discharge the pollutant(s) of concern to an impaired water body without an approved TMDL, the permittee shall ensure that the SWMP includes focused BMPs, along with corresponding measurable goals, that the permittee will implement, to reduce, the discharge of pollutant(s) of concern that contribute to the impairment of the water body.
c. In addition, the permittee shall submit an NOC to amend the SWMP in accordance with Part II.F.6 to include any additional BMPs to address the pollutant(s) of concern. This requirement does not apply to BMPs implemented to address impaired waters that are listed after permit authorization pursuant to Part III.

(2) Impairment of Bacteria

Where the impairment is for bacteria, the permittee shall identify potential significant sources and develop and implement focused BMPs for those sources. The permittee must implement the BMPs listed in Part III.A.5 and Table 1 for the identified sources.

(3) Annual Report

The annual report must include information on compliance with the Discharges Directly to Water Quality Impaired Water Bodies Without an

Approved TMDL section, including results of any sampling conducted by the permittee.

B. Proposed BMPs, Activities, & Measurable Goals

7.1 Program to Detect and Eliminate Pollutants of Concern

7.1.1 Description

The District will create a program to detect and address pollutants of concern that are discharged into an impaired water body. The program will include testing for the presence of the pollutant of concern and focused BMPs, along with corresponding measurable goals, to reduce the discharge of pollutants of concern that contribute to the impairment of the water body.

7.1.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: The District will determine whether there may be a source of the pollutants of concern by referring to CWA §303(d) list and then determining if discharges from the MS4 would be likely to contain the pollutants of concentrate levels of concern.
- Permit Year 2026: If the District determines that they may discharge the pollutants of concern to an impaired water body without an approved TMDL, then the District will ensure the SWMP reflects this determination. The SWMP will be modified to include focused BMPs, along with corresponding measurable goals, that the District will implement, to reduce the discharge of pollutants of concern that contribute to the impairment of the water body.
- Permit Year 2027-2029: The District shall submit an NOC to amend the SWMP to include any additional BMPs to address the pollutants of concern.

7.1.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.1 Program to Detect and Eliminate Pollutants of Concern to meet Measurable Goal 7.1.2.

7.2 Make Sanitary Sewer Improvements

7.2.1 Description

The District will develop a program to identify and address and sanitary sewer systems in need of improvement. The program will determine if any of the District's sanitary sewers systems have discharged pollutants that contribute to the impairment of the water body. The District will develop procedures to address and improve sanitary sewer systems.

7.2.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: The District will develop a program to identify and address any sanitary sewer systems in need of improvement.

- Permit Year 2026-2029: The District will inspect 100% of the sanitary sewer system and perform any necessary maintenance actions.
- Permit Year 2026-2029: Documenting of 100% of inspections and any maintenance and follow-up actions.

7.2.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.2 Program to Detect and Eliminate Pollutants of Concern to meet Measurable Goal 7.2.2.

7.3 Address Onsite Sewage Facilities (Septic Systems)

7.3.1 Description

The District will identify failing septic systems by annually updating a map of impaired watersheds, known septic systems, known sanitary sewer systems, and developed tracts of land. The District will annually conduct an evaluation of the mapping data and identify areas of development not served by the sanitary sewer systems. District will conduct annual inspections to identify failing systems and conduct maintenance to address any inadequacies.

7.3.2 Measurable Goals and Schedule for Implementation

- Permit Year 2025: Develop a map of 100% of the District's septic and sanitary sewer system.
- Permit Year 2026-2029: Annually evaluate the District's map and make any necessary updates.
- Permit Year 2026-2029: Inspect 100% of the District's septic and sanitary sewer systems and conduct necessary maintenance. Document 100% of inspections and maintenance.

7.3.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.3 Address Onsite Sewage Facilities (Septic Systems) to meet Measurable Goal 7.3.2.

7.4 Illicit Discharges and Dumping

7.4.1 Description

The District will annually conduct illicit discharge detection efforts in an impaired watershed, known septic systems, known sanitary sewer systems, and developed tracts of land. District staff or contractors will inspect drainage ways and creeks within impaired watersheds with approved TMDLs to visually inspect stormwater outfalls to identify illicit discharges and dumping sites along riparian areas. Identified illicit discharges will be investigated and eliminated. District staff will contact law enforcement and report illegal discharges or dumping.

7.4.2 Measurable Goals and Schedule for Implementation

- Permit Year: 2025-2029: Inspect 100% of drainage ways and creeks.
- Permit Year 2025-2029: Document 100% of inspections, reports and any follow-up actions taken.

7.4.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.4 Illicit Discharges and Dumping to meet Measurable Goal 7.4.2.

7.5 Identify and Address Significant Animal Sources

7.5.1 Description

The District will annually identify and map significant animal sources of bacteria such as zoos, horse stables, concentrated animal feeding operations. Or similar large facilities with significant animal populations that are in the impaired watershed with an approved bacteria TMDL.

7.5.2 Measurable Goals and Schedule for Implementation

- Permit Year: 2025: Develop a map of 100% of significant animal sources inside the District.
- Permit Year: 2025-2029: Annually evaluate the animal sources map and make any necessary updates.

7.5.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.5 Identify and Address Significant Animal Sources to meet Measurable Goal 7.5.2.

7.6 Residential Education About Bacteria Landings

7.6.1 Description

The District will annually provide educational handouts regarding bacteria landings to residents along with BMP 1.1 Webpage Information.

7.6.2 Measurable Goals and Schedule for Implementation

- Permit Year: 2025-2029: The District will host an annual residential education presentation about bacteria landings.
- Permit Year: 2025-2029: Document 100% of presentations.

7.6.3 Responsible Persons

The Board of Directors, acting through the Engineer of the District, has responsibility for development and implementation of BMP 7.6 Residential Education About Bacteria Landings to meet Measurable Goal 7.6.2.

Section 4. Proposed Best Management Practices Summary Table

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
1.1	WEBSITE INFORMATION	The District will create a page in its website, as well as a link in the Operator's website (which will direct the user to the District's webpage), which will describe the storm water quality issues that affect the District.	Review and update the educational material and messages on the District's webpage twice a year.	TWO TIMES PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029 (10 TOTAL ITEMS)
1.2	STORM DRAIN MARKERS	The District will implement a Storm Drain Marker program to mark all storm sewer inlets and manholes with a message such as "No Dumping, Drains to Waterway, Drains to Waterways" or similar. The District will also require the installation of storm drain markers on all new development projects.	Mark 100% of storm sewer inlets and manholes in District.	DECEMBER 31, 2025
			Inspect 100% of storm sewer markers for any missing or vandalized markers and replace them as needed.	DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
1.3	PUBLIC INVOLVEMENT	The District will develop community involvement and outreach programs that are targeted towards local businesses and community groups. Creating opportunities for the general public and employees to learn about and become involved in the implementation of the Stormwater Management Program (SWMP).	Contact local businesses, schools, youth, and other civic groups in the area and offer volunteer opportunities to become involved in an annual public SWMP implementation activity.	DECEMBER 31, ANNUALLY
			Host an annual presentation during a public meeting addressing the status of SWMP BMPs.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
			Document 100% of annual activities and presentations.	DECEMBER 31, ANNUALLY
1.4	PUBLIC NOTICE REQUIREMENTS	The District will comply with state and local public notice requirements when implementing a public involvement and participation program. The District will make the SWMP available via the community billboard.	Maintain a log of the dates of 100% of public notice and the requirements of county actions.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
2.1	WATER QUALITY MONITORING	The District will host or support a minimum of one water quality monitoring event annually.	For every permit year, host or support one event annually, and document 100% of events.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
2.2	STORMWATER SURVEY	The District will provide or support a minimum of one public survey annually for input on the program implementation to be distributed to at least 75% of the intended audience. This public survey will be provided at a District Board Meeting, held monthly.	Complete and document activity. Maintain log of recipients and completed surveys. Develop and maintain a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
2.3	PUBLIC MEETING	The District will host or support a minimum of one meeting annually for input on the program implementation to be advertised to at least 75% of the intended audience. This public meeting will be integrated within the District Board Meetings, which are held monthly.	Maintain a log of 100% of the public meetings occurring during board meetings. Maintain a tracking system to estimate what percentage of the intended audience is reached for determining BMP effectiveness.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
3.1	MS4 MAPPING	The District maintains a map of its MS4/storm sewer system. The map will be updated annually and modified to include information on all outfalls and the bodies of water that the outfalls drain to as well as the locations and types of water.	Review and update storm sewer map as needed once every year. Maintain a log of 100% of revisions with dates.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
3.2	EDUCATION AND TRAINING	The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe an illicit discharge or illicit connection (BMP 3.0), implementing the construction stormwater program (BMP 4.0), and implementing pollution prevention and good housekeeping practices (BMP 6.0). A log of attendees will be maintained for each annual meeting.	Complete and document activity. Maintain log of 100% of training dates and attendees.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
3.3	PUBLIC REPORTING OF ILLICIT DISCHARGES AND SPILLS	The District will publicize a hotline number on the District's website from BMP No. 1 to report illicit discharges. The hotline will facilitate public reporting of illicit discharges or water quality impacts associated with discharges into or from the small MS4. The District will provide a central contact point to receive reports.	Maintain a log of 100% of advertisements for phone line and methods. Document 100% of all complaints received and any actions that were taken.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
3.4	PROCEDURES FOR RESPONDING TO ILLICIT DISCHARGES AND SPILLS	The District will develop a program to prevent and correct onsite leaking at its sewage disposal systems. The program will include annual inspections of the District's sewage facilities as well as procedures in order to correct any onsite leaking at the facilities.	Develop a schedule for annual inspections of 100% of the District's sewage facilities and procedures to correct any onsite leaking.	DECEMBER 31,2025
			Inspect 100% of the District's sewage facilities and maintain a log of 100% of all corrective measures taken.	DECEMBER 31, ANNUALLY
			Review the schedule and procedures and make improvements wherever necessary.	DECEMBER 31, ANNUALLY

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
3.5	PROGRAM TO DETECT AND ELIMINATE ILLICIT DISCHARGES INCLUDING SOURCE INVESTIGATION	The District will develop a program to detect and address non-storm water discharges including illegal dumping into the storm sewer system. The program will include annual investigation/inspection of businesses that discharge to the storm sewer facilities, annual dry weather inspection of the storm sewer system, and response to complaints from the public. It will also provide contact information for reporting illicit discharges or dumping. At a minimum the investigations/inspections will: • Prioritize the investigation/inspection of discharges based on their relative risk of pollution. • Report to the TCEQ immediately upon becoming aware of the occurrence of any illicit flows believed to be an immediate threat to human health or the environment. • Track all investigations and document, at a minimum, the date(s) the illicit discharge was observed; the results of the investigation; any follow-up of the investigation; and the date the investigation was closed.	Develop a schedule for annual inspections of 100% of the District's storm sewer facilities.	DECEMBER 31,2025
			Develop procedures for elimination and investigation of illicit discharges.	DECEMBER 31, 2025
			Inspect 100% of storm sewer facilities and investigate 100% of all reported illicit discharges.	DECEMBER 31, ANNUALLY
			Document 100% of inspections and investigations.	DECEMBER 31, ANNUALLY
			Annually review the schedule and procedures and make changes as needed.	ONCE PER YEAR BY: DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	PERMIT YEAR
4.1	REVIEW AND MAINTAIN TECHNICAL MANUAL	The District will adopt the City of Houston Stormwater Management Handbook for Construction Activity via District ordinance. The District's ordinance will make complying with the all of the rules, regulations and guidelines of the handbook mandatory for any construction site storm water runoff control and will include authorization to enforce a penalty on those who are found in violation of the handbook. The handbook describes the construction requirement for construction site storm water runoff control. It addresses storm water runoff from construction sites that are one acre and greater, including sites that are part of a larger common plan of development. It describes appropriate erosion, sediment, and waste controls. This manual was selected because Montgomery County and City of Conroe do not have comparable technical manuals. Once a manual is adopted by either entity, the District will adopt it in lieu of the City of Houston manual.	Officially adopt the City of Houston Stormwater Management Handbook through District ordinance.	DECEMBER 31, 2025
			Inform contractors to follow City of Houston Stormwater Management Handbook for any and all Construction Activities.	DECEMBER 31, ANNUALLY
			Document 100% of violations of the District's manual and any penalties or follow up actions.	DECEMBER 31, ANNUALLY
			Annually review the Technical Manual and make changes as needed.	ONCE PER YEAR BY: DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	PERMIT YEAR
4.2	DISCHARGE PROHIBITIONS	The District will develop and enforce documentation to ensure prohibited discharges do not occur. This documentation will be provided through BMP 1.1 Webpage Information and BMP 1.4 Public Notice Requirements. This documentation may also be delivered to District residents along with their monthly water bill.	Maintain a log of 100% of documentation provided on District Website, Public Notices, and with Water Bills.	DECEMBER 31, ANNUALLY
4.3	REPORTING HOTLINE	The District will set up a reporting hotline as a method for the public to report construction site problems or issues.	Maintain a log of 100% of advertisements for phone line and methods. Document 100% of all complaints received and any actions that were taken.	DECEMBER 31, ANNUALLY
4.4	EVALUATE AND UPGRADE SITE PLAN REVIEW AND SITE INSPECTION PROGRAMS	The District will review and revise current site plan review and inspection programs in order to incorporate new regulations regarding storm water runoff at construction sites. The District will then make appropriate changes to the current program in order to include oversight of the new regulation for construction site storm water management.	Once a year evaluate 100% of existing procedures and identify areas needing revision.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
4.5	CONTRACTOR TRAINING AND CERTIFICATION	The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe illicit discharge or illicit connection (BMP 3.0), implementing the construction stormwater program (BMP 4.0), and implementing pollution prevention and good housekeeping practices (BMP 6.0). A log of attendees will be maintained for each annual meeting.	Complete and document activity. Maintain a log of 100% of training dates and attendees.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	PERMIT YEAR
5.1	EVALUATE AND UPGRADE SITE PLAN REVIEW AND SITE INSPECTION PROGRAMS	The District will review and revise current site plan review and inspection programs in order to incorporate new regulations regarding storm water runoff at construction sites. The District will then make appropriate changes to the current program in order to include oversight of the new regulation for construction site storm water management.	Once a year evaluate 100% of existing procedures and identify areas needing revision.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
5.2	REVIEW AND MAINTAIN TECHNICAL MANUAL	The District will adopt the City of Houston Stormwater Management Handbook for Construction Activity via District ordinance. The District's ordinance will make complying with the all of the rules, regulations and guidelines of the handbook mandatory for any construction site storm water runoff control and will include authorization to enforce a penalty on those who are found in violation of the handbook. The handbook describes the construction requirement for construction site storm water runoff control. It addresses storm water runoff from construction sites that are one acre and greater, including sites that are part of a larger common plan of development. It describes appropriate erosion, sediment, and waste controls. This manual was selected because Montgomery County and City of Conroe do not have comparable technical manuals. Once a manual is adopted by either entity, the District will adopt it in lieu of the City of Houston manual.	Officially adopt the City of Houston Stormwater Management Handbook through District ordinance.	DECEMBER 31, 2025
			Inform 100% of contractors to the City of Houston Stormwater Management Handbook follow for any construction activities.	DECEMBER 31, ANNUALLY
			Document 100% of violations of the District's manual and any penalties or follow up actions.	DECEMBER 31, ANNUALLY
			Annually review the Technical Manual and make changes as needed.	ONCE PER YEAR BY: DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
5.3	LONG TERM OPERATION AND MAINTENANCE	The District will develop a schedule to inspect all of its post construction storm water control measures. Inspections will be done to identify anything obstructing the storm water control measure such as debris or sediment buildup. Inspections will verify that the measures are operational, and maintenance will be done as needed.	Develop a schedule and procedure for annual onsite inspections of 100% of post construction storm water control measures.	DECEMBER 31, 2025
			Inspect 100% of post construction storm water control measures. Maintain a log of 100% of inspections and maintenance.	DECEMBER 31, ANNUALLY
			Annually review the schedule and procedures and make any necessary changes.	DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	PERMIT YEAR
6.1	STORM SEWER AND DRAINAGE SYSTEM INSPECTION AND MAINTENANCE PROGRAM	The District will develop a program to inspect the storm sewer system including all pipes, culverts, inlets, drainage channels and detention facilities including proper removal and disposal of waste from the storm sewer system. The program will include procedures of proper waste disposal of dredge spoil, sediment, and floatables in a landfill. The inspections will look for possible problems, leaks, clogs, and damage to structures and debris. The District will inspect a portion of its system monthly to complete the entire system before the end of the permit term.	Develop a program and schedule to annually inspect 100% of the storm sewer system.	DECEMBER 31, 2025
			Inspect 100% of storm sewer system and evaluate frequency of inspections and make changes to schedule as needed.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029
6.2	GOOD HOUSEKEEPING OPERATIONS AT DISTRICT OWNED FACILITIES	The District will conduct an internal audit of District owned facilities and identify areas that may have potential impact on storm water quality or illicit discharges. The District will also evaluate the condition of and presence of spill response kits at District facilities as well as properly removing and disposing of any dredge spoil, accumulated sediment, and floatables found during inspections in a landfill. Appropriate BMPs will be developed and implemented to reduce pollutants and protect water quality. District owned facilities include a Water Plant, a Wastewater Treatment Plant, and two (2) Lift Stations.	Document 100% of the inventory of facilities and SWQ features.	DECEMBER 31, 2025
			Conduct annual internal audit of District owned facilities. Evaluate existing operations and propose and implement new BMPs as needed.	ONCE PER YEAR BY: DECEMBER 31, 2025 DECEMBER 31, 2026 DECEMBER 31, 2027 DECEMBER 31, 2028 DECEMBER 31, 2029

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
6.3	FIELD STAFF AND OPERATOR TRAINING	The District will inform or train all field staff and/or operators who may come into contact with or otherwise observe an illicit discharge or illicit connection (BMP 2.0), implementing the construction stormwater program (BMP 3.0), and implementing pollution prevention and good housekeeping practices (BMP 5.0). A log of attendees will be maintained for each annual meeting.	Complete and document activity. Maintain log of 100% of training dates and attendees.	DECEMBER 31, ANNUALLY

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
7.1	PROGRAM TO DETECT AND ELIMINATE POLLUTANTS OF CONCERN	The District will create a program to detect and address pollutants of concern that are discharged into an impaired water body. The program will include testing for the presence of the pollutant of concern and focused BMPs, along with corresponding measurable goals, to reduce the discharge of pollutants of concern that contribute to the impairment of the water body.	The District will determine whether there may be a source of the pollutants of concern by referring to CWA §303(d) list and then determining if discharges from the MS4 would be likely to contain the pollutants of concentrate levels of concern.	DECEMBER 31, 2025
			If the District determines that they may discharge the pollutants of concern to an impaired water body without an approved TMDL, then the District will ensure the SWMP reflects this determination. The SWMP will be modified to include focused BMPs, along with corresponding measurable goals, that the District will implement, to reduce the discharge of pollutants of concern that contribute to the impairment of the water body.	DECEMBER 31, ANNUALLY
			The District shall submit an NOC to amend the SWMP to include any additional BMPs to address the pollutants of concern.	DECEMBER 31, ANNUALLY
7.2	PROGRAM TO DETECT SANITARY SEWER OVERFLOWS	The District will create a program to detect Sanitary Sewer overflows and encourage owners and operators to address sanitary sewer leaks and overflows.	The District will develop a program to identify and address any sanitary sewers systems in need of improvement.	DECEMBER 31, 2025
			Inspect 100% of the sanitary sewer system and perform any necessary maintenance actions.	DECEMBER 31, ANNUALLY
			Document 100% of inspections and any maintenance and follow-up actions.	DECEMBER 31, ANNUALLY

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
7.3	PROGRAM TO ADDRESS ONSITE SEWAGE FACILITIES	The District will identify failing septic systems by annually updating a map of impaired watersheds, known septic systems, known sanitary sewer systems, and developed tracts of land. The District will annually conduct an evaluation of the mapping data and identify areas of development not served by the sanitary sewer systems. District will conduct annual inspections to identify failing systems and conduct maintenance to address any inadequacies.	Develop a map of 100% of the District's septic and sanitary sewer systems.	DECEMBER 31, 2025
			Annually evaluate the District's map and make any necessary updates.	DECEMBER 31, ANNUALLY
			Inspect 100% of the District's septic and sanitary sewer systems and conduct necessary maintenance. Document 100% of inspections and maintenance.	DECEMBER 31, ANNUALLY
7.4	ILLICIT DISCHARGES AND DUMPIMG	The district will annually conduct illicit discharge detection efforts in an impaired watershed, known septic systems, known sanitary sewer systems, and developed tracts of land. District staff or contractors will inspect drainage ways and creeks within impaired watersheds with approved TMDLs to visually inspect stormwater outfalls to identify illicit discharges and dumping sites along riparian areas. Identified illicit discharges will be investigated and eliminated. District staff will contact law enforcement and report illegal discharges or dumping. Found dumping sites will be prioritized for mitigation.	Inspect 100% of drainage ways and creeks.	DECEMBER 31, 2025
			Document 100% of inspections, reports and any follow-up actions taken.	DECEMBER 31, ANNUALLY

ITEM NO.	BMPs	ACTIVITY	MEASURABLE GOALS	DEADLINE
7.5	IDENTIFY AND ADDRESS SIGNIFICANT ANIMAL SOURCES	The District will annually identify and map significant animal sources of bacteria such as zoos, horse stables, concentrated animal feeding operations. Or similar large facilities with significant animal populations that are in the impaired watershed with an approved bacteria TMDL.	Develop a map of 100% of significant animal sources inside the District.	DECEMBER 31, 2025
			Annually evaluate the animal sources map and make any necessary updates.	DECEMBER 31, ANNUALLY

Section 5. Definitions and Acronyms

7. Definitions

Arid Areas - Areas with an average annual rainfall of less than ten (10) inches.

Benchmarks – A benchmark pollutant value is a guidance level indicator that helps determine the effectiveness of chosen best management practices (BMPs). This type of monitoring differs from "compliance monitoring" in that exceedances of the indicator or benchmark level are not permit violations, but rather indicators that can help identify problems at the MS4 with exposed or unidentified pollutant sources; or control measures that are either not working correctly, whose effectiveness need to be re-considered, or that need to be supplemented with additional BMP(s).

Best Management Practices (BMPs) - Schedules of activities, prohibitions of practices, maintenance procedures, structural controls, local ordinances, and other management practices to prevent or reduce the discharge of pollutants. BMPs also include treatment requirements, operating procedures, and practices to control runoff, spills or leaks, waste disposal, or drainage from raw material storage areas.

Catch basins - Storm drain inlets and curb inlets to the storm drain system. Catch basins typically include a grate or curb inlet that may accumulate sediment, debris, and other pollutants.

Classified Segment - A water body that is listed and described in Appendix A or Appendix C of the Texas Surface Water Quality Standards, at 30 Texas Administrative Code (TAC) § 307.10.

Clean Water Act (CWA) - The Federal Water Pollution Control Act or Federal Water Pollution Control Act Amendments of 1972, Pub.L. 92-500, as amended Pub. L. 95-217, Pub. L. 95-576, Pub. L. 96-483 and Pub. L. 97-117, 33 U.S.C. 1251 et. seq.

Common Plan of Development or Sale - A construction activity that is completed in separate stages, separate phases, or in combination with other construction activities. A common plan of development or sale is identified by the documentation for the construction project that identifies the scope of the project, and may include plats, blueprints, marketing plans, contracts, building permits, a public notice or hearing, zoning requests, or other similar documentation and activities.

Construction Activity - Soil disturbance, including clearing, grading, excavating, and other construction related activities (e.g., stockpiling of fill material and demolition); and not including routine maintenance that is performed to maintain the original line and grade, hydraulic capacity, or original purpose of the site (e.g., the routine grading of existing dirt roads, asphalt overlays of existing roads, the routine clearing of existing right-of-ways, and similar maintenance activities). Regulated construction activity is defined in terms of small and large construction activity.

Small Construction Activity is construction activity that results in land disturbance of equal to or greater than one (1) acre and less than five (5) acres of land. Small construction activity also includes the disturbance of less than one (1) acre of total land area that is part of a larger common plan of development or sale if the larger common plan will ultimately disturb equal to or greater than one (1) and less than five (5) acres of land.

Large Construction Activity is construction activity that results in land disturbance of equal to or greater than five (5) acres of land. Large construction activity also includes the disturbance of less than five (5) acres of total land area that is part of a larger common plan of development or sale if the larger common plan will ultimately disturb equal to or greater than five (5) acres of land.

Construction Site Operator - The entity or entities associated with a small or large construction project that meet(s) either of the following two criteria:

(a) The entity or entities that have operational control over construction plans and specifications (including approval of revisions) to the extent necessary to meet the requirements and conditions of this general permit; or

(b) The entity or entities that have day-to-day operational control of those activities at a construction site that are necessary to ensure compliance with a stormwater pollution prevention plan (SWP3) for the site or other permit conditions (for example they are authorized to direct workers at a site to carry out activities required by the SWP3 or comply with other permit conditions).

Control Measure - Any BMP or other method used to prevent or reduce the discharge of pollutants to water in the state.

Conveyance - Curbs, gutters, man-made channels and ditches, drains, pipes, and other constructed features designed or used for flood control or to otherwise transport stormwater runoff.

Discharge –When used without a qualifier, refers to the discharge of stormwater runoff or certain non-stormwater discharges as allowed under the authorization of this general permit.

Edwards Aquifer - As defined in 30 TAC §213.3 (relating to the Edwards Aquifer), that portion of an arcuate belt of porous, water-bearing, predominantly carbonate rocks known as the Edwards and Associated Limestones in the Balcones Fault Zone trending from west to east to northeast in Kinney, Uvalde, Medina, Bexar, Comal, Hays, Travis, and Williamson Counties; and composed of the Salmon Peak Limestone, McKnight Formation, West Nueces Formation, Devil's River Limestone, Person Formation, Kainer Formation, Edwards Formation, and Georgetown Formation. The permeable aquifer units generally overlie the less-permeable Glen Rose Formation to the south, overlie the less-permeable Comanche Peak and Walnut Formations north of the Colorado River, and underlie the less-permeable Del Rio Clay regionally.

Edwards Aquifer Recharge Zone - Generally, that area where the stratigraphic units constituting the Edwards Aquifer crop out, including the outcrops of other geologic formations in proximity to the Edwards Aquifer, where caves, sinkholes, faults, fractures, or other permeable features would create a potential for recharge of surface waters into the Edwards Aquifer. The recharge zone is identified as that area designated as such on official maps located in the offices of the TCEQ or the TCEQ website.

Final Stabilization - A construction site where any of the following conditions are met:

(a) All soil disturbing activities at the site have been completed and a uniform (for example, evenly distributed, without large bare areas) perennial vegetative cover with a density of 70 percent of the native background vegetative cover for the area has been established on all unpaved areas and areas not covered by permanent structures, or equivalent permanent stabilization measures (such as the use of riprap, gabions, or geotextiles) have been employed.

(b) For individual lots in a residential construction site by either:

(1) The homebuilder completing final stabilization as specified in condition (a) above; or

(2) The homebuilder establishing temporary stabilization for an individual lot prior to the time of transfer of the ownership of the home to the buyer and after informing the homeowner of the need for, and benefits of, final stabilization.

(c) For construction activities on land used for agricultural purposes (for example pipelines across crop or range land), final stabilization may be accomplished by returning the disturbed land to its preconstruction agricultural use. Areas disturbed that were not previously used for agricultural activities, such as buffer strips immediately adjacent to a surface water and areas which are not being returned to their preconstruction agricultural use must meet the final stabilization conditions of condition (a) above.

(d) In arid, semi-arid, and drought-stricken areas only, all soil disturbing activities at the site have been completed and both of the following criteria have been met:

(1) Temporary erosion control measures (e.g., degradable rolled erosion control product) are selected, designed, and installed along with an appropriate seed base to provide erosion control for at least three years without active maintenance by the operator, and

(2) The temporary erosion control measures are selected, designed, and installed to achieve 70 percent vegetative coverage within three years.

General Permit - A permit issued to authorize the discharge of waste into or adjacent to water in the state for one or more categories of waste discharge within a geographical area of the state or the entire state as provided by Texas Water Code (TWC) §26.040.

Groundwater Infiltration - For the purposes of this permit, groundwater that enters a municipal separate storm sewer system (including sewer service connections and foundation drains) through such means as defective pipes, pipe joints, connections, or manholes.

High Priority Facilities - High priority facilities are facilities with a high potential to generate stormwater pollutants. These facilities must include, at a minimum, the MS4 operator's maintenance yards, hazardous waste facilities, fuel storage locations, and other facilities where chemicals or other materials have a high potential to be discharged in stormwater. Among the factors that must be considered when giving a facility a high priority ranking are: the amount of urban pollutants stored at the site, the identification of improperly stored materials, activities that must not be performed outside (for example, changing automotive fluids, vehicle washing), proximity to waterbodies, proximity to sensitive aquifer recharge features, poor housekeeping practices, and discharge of pollutant(s) of concern to impaired water(s).

Hyperchlorinated Water –Water resulting from hyperchlorination of waterlines or vessels, with a chlorine concentration greater than 10 milligrams per liter (mg/L).

Illicit Connection - Any man-made conveyance connecting an illicit discharge directly to a municipal separate storm sewer.

Illicit Discharge - Any discharge to a municipal separate storm sewer that is not entirely composed of stormwater, except discharges pursuant to this general permit or a separate authorization and discharges resulting from emergency fire fighting activities.

Impaired Water - A surface water body that is identified as impaired on the latest approved CWA §303(d) List or waters with an EPA approved or established TMDL that are found on the latest EPA approved *Texas Integrated Report of Surface Water Quality for CWA Sections 305(b) and 303(d)* which lists the category 4 and 5 water bodies.

Implementation Plan (I-Plan) – A detailed plan of action that describes the measures or activities necessary to achieve the pollutant reductions identified in the total maximum daily load (TMDL).

Indian Country - Defined in 18 USC § 1151 as: (a) All land within the limits of any Indian reservation under the jurisdiction of the United States (U.S.) Government, notwithstanding the issuance of any patent, and including rights-of-way running through the reservation; (b) All dependent Indian communities within the borders of the U.S. whether within the original or subsequently acquired territory thereof, and whether within or without the limits of a state; and (c) All Indian allotments, the Indian titles to which have not been extinguished, including rights of-way running through the same. This definition includes all land held in trust for an Indian tribe.

Indicator Pollutant - An easily measured pollutant, that may or may not impact water quality that indicates the presence of other stormwater pollutants.

Industrial Activity - Any of the ten (10) categories of industrial activities included in the definition of "stormwater discharges associated with industrial activity" as defined in 40 Code of Federal Regulations (CFR) §122.26(b)(14)(i)-(ix) and (xi).

Infeasible - For the purpose of this permit, infeasible means not technologically possible, or not economically practicable and achievable in light of best industry practices. The TCEQ notes that it does not intend for any small MS4 permit requirement to conflict with state water right laws.

Maximum Extent Practicable (MEP) - The technology-based discharge standard for municipal separate storm sewer systems (MS4s) to reduce pollutants in stormwater discharges that was established by the CWA § 402(p). A discussion of MEP as it applies to small MS4s is found in 40 CFR § 122.34.

MS4 Operator - For the purpose of this permit, the public entity or the entity contracted by the public entity, responsible for management and operation of the small municipal separate storm sewer system that is subject to the terms of this general permit.

Municipal Separate Storm Sewer System (MS4) - A conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains):

(a) Owned or operated by the U.S., a state, city, town, borough, county, parish, district, association, or other public body (created by or pursuant to state law) having jurisdiction over the disposal of sewage, industrial wastes, stormwater, or other wastes, including special districts under state law such as a sewer district, flood control district or drainage district, or similar entity, or an Indian tribe or an authorized Indian tribal organization, or a designated and approved management agency under the CWA §208 that discharges to surface water in the state;

(b) That is designed or used for collecting or conveying stormwater;

(c) That is not a combined sewer; and

(d) That is not part of a publicly owned treatment works (POTW) as defined in 40 CFR §122.2.

Non-traditional SmallMS4 - A small MS4 that often cannot pass ordinances and may not have the enforcement authority like a traditional small MS4 would have to enforce the stormwater management program. Examples of non-traditional small MS4s include counties, transportation authorities (including the Texas Department of Transportation), municipal utility districts, drainage districts, military bases, prisons and universities.

Notice of Change (NOC) - A written notification from the permittee to the executive director providing changes to information that was previously provided to the agency in a notice of intent.

Notice of Intent (NOI) - A written submission to the executive director from an applicant requesting coverage under this general permit.

Notice of Termination (NOT) - A written submission to the executive director from a permittee authorized under a general permit requesting termination of coverage under this general permit.

Outfall - A point source at the point where a small MS4 discharges to waters of the U.S. and does not include open conveyances connecting two municipal separate storm sewers, or pipes, tunnels, or other conveyances that connect segments of the same stream or other waters of the U.S. and are used to convey waters of the U.S. For the purpose of this permit, sheet flow leaving a linear transportation system without channelization is not considered an outfall. Point sources such as curb cuts; traffic or right-or-way barriers with drainage slots that drain into open culverts, open swales or an adjacent property, or otherwise not actually discharging into waters of the U.S. are not considered an outfall.

Permittee - The MS4 operator authorized under this general permit.

Point Source - (from 40 CFR § 122.22) any discernible, confined, and discrete conveyance, including but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged. This term does not include return flows from irrigated agriculture or agricultural stormwater runoff.

Pollutant(s) of Concern – For the purpose of this permit, includes biochemical oxygen demand (BOD), sediment or a parameter that addresses sediment (such as total suspended solids (TSS), turbidity or siltation), pathogens, oil and grease, and any pollutant that has been identified as a cause of impairment of any water body that will receive a discharge from an MS4.
(Definition from 40 CFR § 122.32(e)(3)).

Redevelopment - Alterations of a property that changed the "footprint" of a site or building in such a way that there is a disturbance of equal to or greater than one (1) acre of land. This term does not include such activities as exterior remodeling, routine maintenance activities, and linear utility installation.

Semiarid Areas - Areas with an average annual rainfall of at least ten (10) inches, but less than 20 inches.

Small Municipal Separate Storm Sewer System (MS4) – A conveyance or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, manmade channels, or storm drains):

(a) Owned or operated by the U.S., a state, city, town, borough, county, district, association, or other public body (created by or pursuant to State law) having jurisdiction over disposal of sewage, industrial wastes, stormwater, or other wastes,
including special districts under state law such as a sewer district, flood control district or drainage district, or similar entity, or an Indian tribe or an authorized Indian tribal organization, or a designated and approved management agency under CWA § 208;

(b) Designed or used for collecting or conveying stormwater;

(c) Which is not a combined sewer;

(d) Which is not part of a POTW as defined in 40 CFR § 122.2; and

(e) Which was not previously regulated under a National Pollutant Discharge Elimination System (NPDES) or a Texas Pollutant Discharge Elimination System (TPDES) individual permit as a medium or large municipal separate storm sewer system, as defined in 40 CFR §§122.26(b)(4) and (b)(7).

This term includes systems similar to separate storm sewer systems at military bases, large hospitals or prison complexes, and highways and other thoroughfares. This term does not include separate storm sewers in very discrete areas, such as individual buildings. For the purpose of this permit, a very discrete system also includes storm drains associated with certain municipal offices and education facilities serving a nonresidential population, where those storm drains do not function as a system, and where the buildings are not physically interconnected to a small MS4 that is also operated by that public entity.

Stormwater and Stormwater Runoff - Rainfall runoff, snow melt runoff, and surface runoff and drainage.

Stormwater Associated with Construction Activity - Stormwater runoff from an area where there is either a large construction or a small construction activity.

Stormwater Management Program (SWMP) - A comprehensive program to manage the quality of discharges from the municipal separate storm sewer system.

Structural Control (or Practice) - A pollution prevention practice that requires the construction of a device, or the use of a device, to capture or prevent pollution in stormwater runoff. Structural controls and practices may include but are not limited to: wet ponds, bioretention, infiltration basins, stormwater wetlands, silt fences, earthen dikes, drainage swales, vegetative lined ditches, vegetative filter strips, sediment traps, check dams, subsurface drains, storm drain inlet protection, rock outlet protection, reinforced soil retaining systems, gabions, and temporary or permanent sediment basins.

Surface Water in the State - Lakes, bays, ponds, impounding reservoirs, springs, rivers, streams, creeks, estuaries, wetlands, marshes, inlets, canals, the Gulf of Mexico inside the territorial limits of the state (from the mean high water mark (MHWM) out 10.36 miles into the Gulf), and all other bodies of surface water, natural or artificial, inland or coastal, fresh or salt, navigable or nonnavigable, and including the beds and banks of all water courses and bodies of surface water, that are wholly or partially inside or bordering the state or subject to the jurisdiction of the state; except that waters in treatment systems which are authorized by state or federal law, regulation, or permit, and which are created for the purpose of waste treatment are not considered to be water in the state.

Total Maximum Daily Load (TMDL) - The total amount of a substance that a water body can assimilate and still meet the Texas Surface Water Quality Standards.

Traditional Small MS4 - A small MS4 that can pass ordinances and have the enforcement authority to enforce the stormwater management program. An example of traditional MS4s includes cities.

Urbanized Area (UA) - An area of high population density that may include multiple small MS4s as defined and used by the U.S. Census Bureau in the 2000 and the 2010 Decennial Census.

Waters of the United States - (According to 40 CFR § 122.2) Waters of the United States or waters of the U.S. means:

(a) All waters which are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce, including all waters which are subject to the ebb and flow of the tide;

(b) All interstate waters, including interstate wetlands;

(c) All other waters such as intrastate lakes, rivers, streams (including intermittent streams), mudflats, sandflats, wetlands, sloughs, prairie potholes, wet meadows, playa lakes, or natural ponds that the use, degradation, or destruction of which would affect or could affect interstate or foreign commerce including any such waters:

(1) Which are or could be used by interstate or foreign travelers for recreational or other purposes;

(2) From which fish or shellfish are or could be taken and sold in interstate or foreign commerce; or

(3) Which are used or could be used for industrial purposes by industries in interstate commerce;

(d) All impoundments of waters otherwise defined as waters of the United States under this definition;

(e) Tributaries of waters identified in paragraphs (a) through (d) of this definition;

(f) The territorial sea; and

(g) Wetlands adjacent to waters (other than waters that are themselves wetlands) identified in paragraphs (a) through (f) of this definition.

Waste treatment systems, including treatment ponds or lagoons designed to meet the requirements of the CWA are not waters of the U.S. This exclusion applies only to manmade bodies of water which neither were originally created in waters of the U.S. (such as disposal area in wetlands) nor resulted from the impoundment of waters of the U.S. Waters of the U.S. do not include prior converted cropland. Notwithstanding the determination of an area's status as prior converted cropland by any other federal agency, for the purposes of the CWA, the final authority regarding the CWA jurisdiction remains with the EPA.

8. Commonly Used Acronyms

BMP	Best Management Practice
CFR	Code of Federal Regulations
CGP	Construction General Permit, TXR150000
CWA	Clean Water Act
DMR	Discharge Monitoring Report
EPA	Environmental Protection Agency
FR	Federal Register
IP	Implementation Procedures
MCM	Minimum Control Measure
MSGP	Multi-Sector General Permit, TXR050000
MS4	Municipal Separate Storm Sewer System
NOC	Notice of Change
NOD	Notice of Deficiency
NOI	Notice of Intent
NOT	Notice of Termination
NPDES	National Pollutant Discharge Elimination System
SWMP	Storm Water Management Program

SWP3	Storm Water Pollution Prevention Plan (SWPPP)
TAC	Texas Administrative Code
TCEQ	Texas Commission on Environmental Quality
TPDES	Texas Pollutant Discharge Elimination System
TWC	Texas Water Code